

Product Type: Full Search

Order Date: 02/13/2026

Order/Loan#: Test

PROPERTY INFORMATION			
Borrower's Name:	Philip Lyle Cherney, Jr. and Haley Arrianna Russell		
Property Address:	870 Friendship Cir		
Municipality:	Labelle	Zip:	33935
State:	FL	County:	Hendry
Parcel Number:	2 29 43 08 010 0000-044.0	Subdivision:	Belle Arbor West Re-Plat
Searched From Date:	08/13/2021	Effective Date:	02/10/2026
Short Legal:	Lot 44, Belle Arbor West		

VESTING DEED INFORMATION			
Deed Type:	Warranty Deed	Consideration Amount:	\$10.00
Grantor Name:	WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company aka WJH LLC, a Delaware limited liability company dba WJHFL LLC		
Grantee Name:	Philip Lyle Cherney, Jr. and Haley Arrianna Russell, husband and wife		
Fee Simple/leasehold:	Fee Simple		
Dated Date:	11/21/2025	Recorded Date:	11/25/2025
Book/Page No:	1114/1188	Instrument No:	202526014056
Comments:			

REFERENCE OF LEGAL DESCRIPTION			
Dated Date:	11/21/2025	Recorded Date:	11/25/2025
Book/Page No:	1114/1188	Instrument No:	202526014056

CHAIN OF TITLE			
Deed Type:	Warranty Deed	Consideration Amount:	\$10.00
Grantor Name:	Labelle Landings, LLC, a Florida Limited Liability Company		
Grantee Name:	WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company		
Fee Simple/leasehold:	Fee Simple		
Dated Date:	04/09/2024	Recorded Date:	04/11/2024
Book/Page No:	1074/394	Instrument No:	202426004337
Comments:			

CHAIN OF TITLE			
Deed Type:	Warranty Deed	Consideration Amount:	\$10.00
Grantor Name:	Falcon Eyrie Farms, L.C, a Florida Limited Liability Company		
Grantee Name:	Labelle Landings, LLC, a Florida Limited Liability Company		
Fee Simple/leasehold:	Fee Simple		
Dated Date:	08/05/2021	Recorded Date:	08/13/2021
Book/Page No:	1005/1132	Instrument No:	202126010651
Comments:			

CHAIN OF TITLE			
Deed Type:	Warranty Deed	Consideration Amount:	\$10.00
Grantor Name:	Double D Leasing, LLC, a Florida Limited Liability Company		
Grantee Name:	Labelle Landings, LLC, a Florida Limited Liability Company		
Fee Simple/leasehold:	Fee Simple		
Dated Date:	08/05/2021	Recorded Date:	08/13/2021
Book/Page No:	1005/1130	Instrument No:	202126010650
Comments:			

DEED OF TRUST/MORTGAGE INFORMATION			
Borrower's Name:	Philip Lyle Cherney, Jr. and Haley Arrianna Russell, husband and wife		
Lender Name:	Mortgage Electronic Registration Systems, Inc., as nominee for Inspire Home Loans, Inc		
Trustee Name:	N/A		
Dated Date:	11/21/2025	Recorded Date:	11/25/2025
Instrument No:	202526014057	Book/Page No:	1114/1190
Loan Amount:	\$235,642.00	Maturity Date:	12/01/2055
Open End/Closed End:	Closed End	MIN Number:	1013880-0000130373-2
PUD/Family/Home/FHA Rider:	PUD Rider		
Associated Documents:			
Comments:			

JUDGMENT & LIEN'S INFORMATION
NA

TAX INFORMATION					
Parcel ID:	2 29 43 08 010 0000-044.0	Assessment Year:	2025	Tax Year:	2025
Land Value:	\$5,250.00	Improvement Value:	\$200,866.00	Total Value:	\$206,116.00
Homestead Exemption	NA	Other Exemption	NA		
Installments:	Tax Amount:	Status:	Due/Paid Date:	Total Amount (P&I):	Good through Date:
Annual	\$4,613.28	Paid	11/17/2025		
Comments:					

EXCEPTIONS/EASEMENTS DOCUMENTS
N/A

MISCELLANEOUS DOCUMENTS
1. Plat Map is Recorded in B/P 6/227

LEGAL DESCRIPTION
Lot 44, Belle Arbor West Re-Plat, according to the map or plat thereof, as recorded in Plat Book 6, Pages 227 thru 232, of the Public Records of Hendry County, Florida.

NAMES SEARCH
Cherney Philip Russell Haley WJHFL LLC, d/b/a WJH LLC LaBelle Landings Belle Arbor West

ADDITIONAL COMMENTS
Please note: Search Starts from Developer Deed.

Parcel Summary

Parcel ID	2 29 43 08 010 0000-044.0
Prop ID	60739
Location Address	870 FRIENDSHIP CIR LABELLE, FL 33935
Neighborhood/Area	BELLE ARBOR (201400.00)
Subdivision	BELLE ARBOR WEST
Brief Legal Description*	LABELLE BELLE ARBOR WEST S/D REPLAT LOT 44 PB 6 Pages 227-232 (Note: *The Description above is not to be used on legal documents.)
Property Use Code	SINGLE FAMILY (0100)
Sec/Twp/Rng	07-43-29
Tax District	City of LaBelle (District 2)
Millage Rate	20.8461
Acreage	0.128
Homestead	N

[View Map](#)



Internal Info

Market Area 20

Owner Information

CHERNEY PHILIP LYLE JR
RUSSELL HALEY ARRIANNA,
870 FRIENDSHIP CIR
LABELLE, FL 33935

Valuation

	2025 Certified Values	2024 Certified Values	2023 Certified Values
Just Market Value	\$206,116	\$5,250	\$5,250
Land Value	\$5,250	\$5,250	\$5,250
Agricultural (Market) Value	\$0	\$0	\$0
Agricultural Classified Value	\$0	\$0	\$0
Improvement Value	\$200,866	\$0	\$0
Non School Assessed Value	\$206,116	\$4,659	\$4,235
School Assessed Value	\$206,116	\$5,250	\$5,250
Exempt Value	\$0	\$0	\$0
Non School Taxable Value	\$206,116	\$4,659	\$4,235
School Taxable Value	\$206,116	\$5,250	\$5,250
Save Our Homes Deferred	\$0	\$0	\$0
Non Save Our Homes Deferred	\$0	\$591	\$1,015

"Just (Market) Value" description - This is the value established by the Property Appraiser for ad valorem purposes. This value does not represent anticipated selling price.

Trim Notices

[2025 TRIM Notice \(PDF\)](#)

Property Record Cards

[2025 Property Record Card \(PDF\)](#)

Tax Collector

[Link to Tax Collector](#)

Land Information

Land Use	Land Use Desc	Acres	Square Feet	Eff. Frontage	Depth	Zoning
0100	SFR	0.13	541259.14	0	0	

Building Information

Type	Single Family Residential	Heat Index	Electric -- Forced Air Ducted
Heated Area	1,452	Air Conditioning	Central Air
Exterior Walls	CBS,Slump/Fluted,IC Form	Bathrooms	2
Roof Cover	Asph./Comp. Shingles	Bedrooms	3
Interior Walls	Drywall	Stories	1.0
Floor Cover	Carpet; Wood Laminant	Effective Year Built	2024
Actual Year Built	2024		

Sub Area

Type	Description	Sq. Footage	Act Year	Eff Year	Quality	Imprv Use	Imprv Use Descr
BAS	BAS Segment	1,452	2024	2024	03	*	ALL
FGR	Garage, Finished	440	2024	2024		*	ALL
FOP	Open Porch, Finished	48	2024	2024		*	ALL
PAVER	Pavers, hardened clay	320	2024	2024		*	ALL

Sales

Sales Date	Sale Price	Instrument	Book/Page	Qualification	Vacant/Improved	Grantor	Grantee
11/21/2025	\$240,000	WD	1114/1188	Qualified (Q)	Improved	WJHFL LLC	**Multiple Buyers**
4/9/2024	\$800,000	WD	1074/0394	Unqualified (U)	Vacant	LABELLE LANDINGS LLC	WJHFL LLC
8/5/2021	\$100	WD	1005/1132	Unqualified (U)	Improved	FALCON EYRIE FARMS LLC	LABELLE LANDINGS LLC
8/5/2021	\$100	WD	1005/1130	Unqualified (U)	Vacant	DOUBLE D LEASING LLC	LABELLE LANDINGS LLC
8/2/2019	\$0	CR	0964/1245	Unqualified (U)	Vacant	**None**	**None**
11/24/2015	\$375,000	WD	0899/1756	Unqualified (U)	Vacant	**None**	**None**
6/8/2006	\$100	WD	0740/1812	Qualified (Q)	Vacant	**None**	**None**
6/2/2005	\$1,375,000	WD	0706/0436	Qualified (Q)	Vacant	**None**	**None**
12/31/2001	\$100	WD	0625/0754	Qualified (Q)	Vacant	**None**	**None**
11/24/1998	\$0	MS	0577/0099	Qualified (Q)	Vacant	**None**	**None**
10/30/1998	\$0	MS	CA98/0086	Qualified (Q)	Vacant	**None**	**None**
10/30/1998	\$0	DC	/0000	Qualified (Q)	Vacant	**None**	**None**
10/23/1984	\$122	QC	0441/0500	Qualified (Q)	Improved	**None**	**None**

Permits

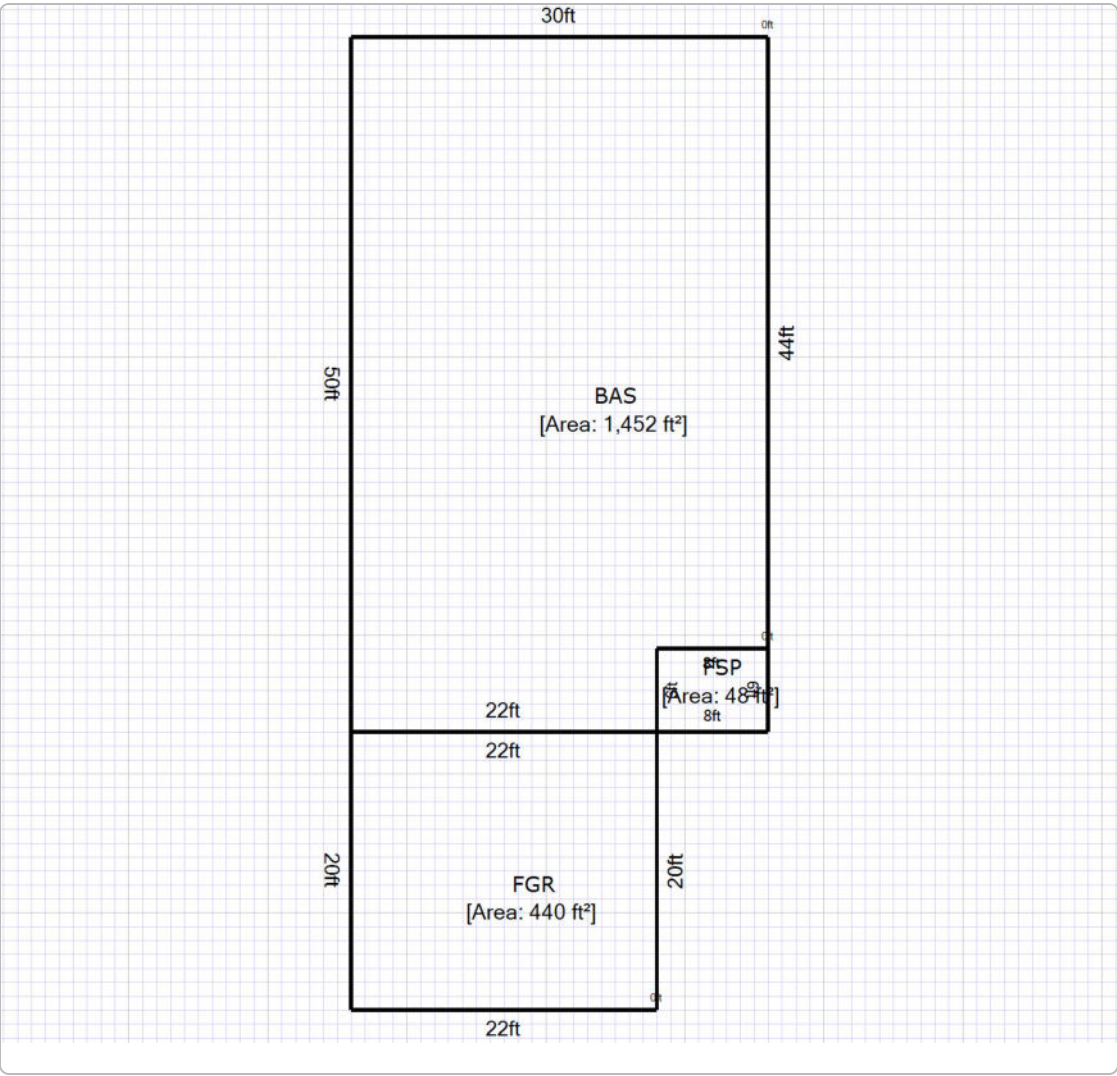
Permit Number	Type	Primary	Active	Issue Date	Value
23L00261	SINGLE FAMILY DWELLING	Yes	No	12/20/2023	\$189,000

Our permitting information is pulled from the Hendry County Permitting Offices. Permitting information shown here is all the Property Appraiser has on file for this property. Any detailed questions about permits should be directed to the Permitting Offices. Their website is: <https://bsaonline.com/Home/MunicipalityHome?uid=3193/>

Photos



Sketches



No data available for the following modules: Extra Features.

This information was derived from data which was compiled by the Hendry County Property Appraiser Office solely for the governmental purpose of property assessment. This information should not be relied upon by anyone as a determination of the ownership of property or market value. No warranties, expressed or implied, are provided for the accuracy of the data herein, it's use, or it's interpretation.
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[Last Data Upload: 2/12/2026, 9:01:58 PM](#)

Contact Us



Amy Collins, CFC
Hendry County Tax Collector

2025 Real Estate
NOTICE OF AD VALOREM TAXES AND NON-AD VALOREM
ASSESSMENTS

60739.0000

PARCEL NUMBER	ESCROW CD	Millage Code
2084329-01000000440		10

WJHFL LLC
2325 LAKEVIEW PKWY STE 600
ALPHARETTA GA 30009

THIS BILL IS FULLY PAID

870 FRIENDSHIP CIR LABELLE 33935
LABELLE BELLE ARBOR WEST S/D REPLAT LOT 44 PB 6
Pages 227-232

PO Box 1780,LaBelle, FL 33975
(863) 675-5280

AD VALOREM TAXES

TAXING AUTHORITY	ASSESSED VALUE	MILLAGE RATE	EXEMPTION AMOUNT	TAXABLE AMOUNT	TAXES LEVIED
BD OF COUNTY COMM - COUNTY (863-675-5318)	206,116	6.7700	0	206,116	1,395.41
CITY OF LABELLE (863-675-2872)	206,116	5.0000	0	206,116	1,030.58
HENDRY REGIONAL MEDICAL CENTER (863-902-3037)	206,116	3.2800	0	206,116	676.06
HENDRY MED CENTER - DEBT SERVICE (863-902-3037)	206,116	0.2200	0	206,116	45.35
SCHOOL BOARD (863-675-4100)	206,116	3.0980	0	206,116	638.55
SCHOOLS CAPITAL OUTLAY (863-675-4100)	206,116	1.5000	0	206,116	309.17
SCHOOLS DISCRETIONARY (863-675-4100)	206,116	0.7480	0	206,116	154.17
SOUTH FLORIDA WATER MGMT DISTRICT (561-682-2486)	206,116	0.0948	0	206,116	19.54
SOUTH FLORIDA WATER EVERGLADES (561-682-2486)	206,116	0.0327	0	206,116	6.74
SOUTH FLORIDA WATER BASIN (561-682-2486)	206,116	0.1026	0	206,116	21.15

IMPORTANT: All exemptions do not apply to all taxing authorities. Please contact the Hendry County Property Appraiser for exemption/assessment questions.

TOTAL MILLAGE	20.8461	AD VALOREM TAXES	4,296.72
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NON AD VALOREM ASSESSMENTS

LEVYING AUTHORITY	RATE	AMOUNT
94SF 94SF - LABELLE FIRE DISTRICT	1.00 Unit @321.3800	321.38
96SF 96SF - LABELLE POLICE DISTRICT	0.00 Unit @321.3800	62.40
99SF LABELLE RECREATION DISTRICT	1.00 Unit @125.0000	125.00

SAVE TIME PAY ONLINE @ <https://hendry.floridatax.us>

NON AD VALOREM ASSESSMENTS	508.78
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COMBINED TAXES AND ASSESSMENTS	4,805.50	See reverse side for important information
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Paid In Full	Taxes	Discount / Interest	Fees	Payments	Amount Due
	4,805.50	-192.22	0.00	4,613.28	0.00

Amy Collins, CFC
Hendry County Tax Collector

2025 Real Estate
NOTICE OF AD VALOREM TAXES AND NON-AD VALOREM
ASSESSMENTS

60739.0000

PARCEL NUMBER	ESCROW CD	Millage Code
2084329-01000000440		10

WJHFL LLC
2325 LAKEVIEW PKWY STE 600
ALPHARETTA GA 30009

THIS BILL IS FULLY PAID

870 FRIENDSHIP CIR LABELLE 33935
LABELLE BELLE ARBOR WEST S/D REPLAT LOT 44 PB 6
Pages 227-232

DO NOT WRITE BELOW THIS PORTION

HENDRY COUNTY TAX COLLECTOR - PO BOX 1780, LABELLE, FL 33975

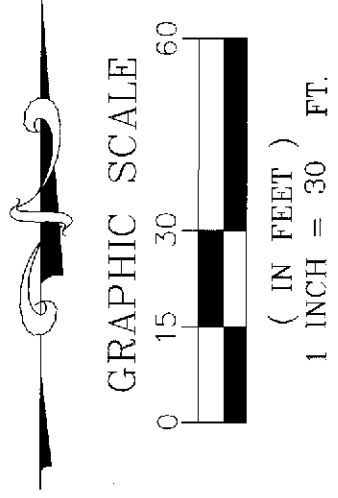
Paid In Full	Taxes	Discount / Interest	Fees	Payments	Amount Due
	4,805.50	-192.22	0.00	4,613.28	0.00

Receipt(s) 2025-15703 on 11/17/25 for \$4,613.28 by PARKWAY TITLE LLC

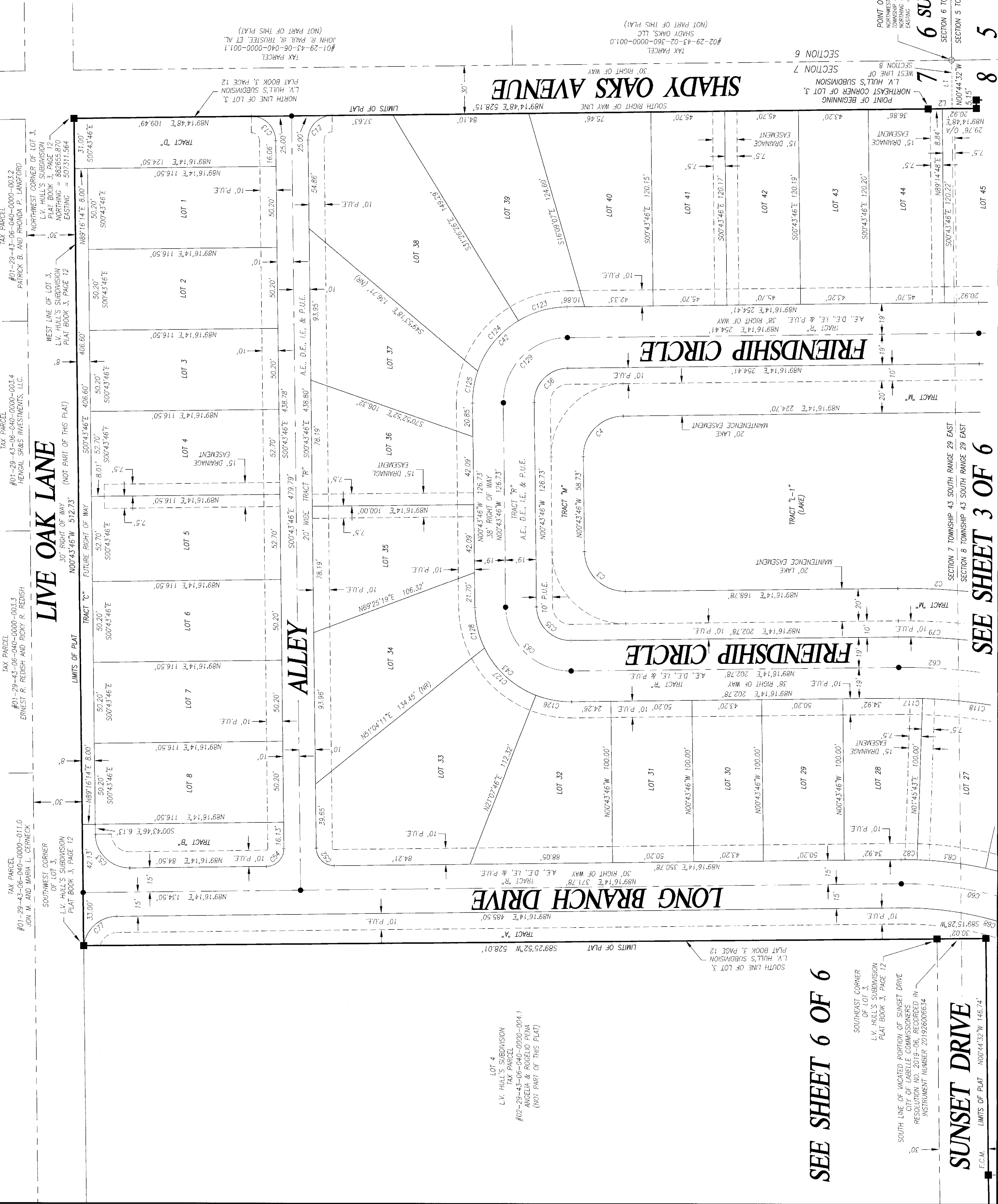
PLEASE RETAIN THIS PORTION FOR YOUR RECORDS

BELLE ARBOR WEST RE-PLAT

A REPLAT OF BELLE ARBOR WEST RECORDED IN PLAT BOOK 6, PAGES 217 THROUGH 222, OF THE PUBLIC RECORDS OF HENDRY COUNTY, FLORIDA,
AND A PORTION OF SHADY OAKS AVENUE,
LYING IN SECTIONS 7 AND 8, TOWNSHIP 43 SOUTH, RANGE 29 EAST,
CITY OF LABELLE, HENDRY COUNTY, FLORIDA



LIVE OAK LANE



CURVE	DELTA	RADIUS	ARC	CHORD BEARING	CHORD
C1	71.00°	150.00'	150.00'	S89°14'48"E	30.06'
C2	90°00'00"	25.00'	39.27'	S44°16'14"W	35.36'
C4	90°00'00"	15.00'	23.56'	S44°15'31"W	21.21'
C12	89°58'34"	15.00'	23.57'	M4°44'29"W	21.21'
C13	90°01'26"	15.00'	23.57'	S45°43'46"E	28.70'
C15	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C16	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C17	90°00'00"	59.00'	92.88'	S44°43'46"E	83.44'
C18	90°00'00"	11.00'	17.88'	S45°43'46"E	15.56'
C19	90°00'00"	21.00'	32.89'	S45°43'46"E	28.70'
C20	90°00'00"	11.00'	17.88'	M4°16'14"E	15.56'
C21	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C22	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C23	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C24	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C25	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C26	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C27	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C28	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C29	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C30	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C31	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C32	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C33	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C34	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C35	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C36	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C37	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
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C41	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C42	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C43	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C44	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C45	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C46	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C47	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C48	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C49	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C50	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C51	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C52	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C53	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C54	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C55	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C56	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C57	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C58	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C59	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C60	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C61	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C62	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C63	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C64	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C65	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C66	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C67	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C68	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C69	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C70	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C71	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C72	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C73	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C74	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C75	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C76	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C77	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C78	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C79	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C80	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C81	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C82	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C83	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C84	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C85	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C86	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C87	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C88	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C89	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C90	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C91	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C92	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C93	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C94	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C95	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C96	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C97	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C98	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C99	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'
C100	90°00'00"	21.00'	32.89'	S44°16'14"W	28.70'

- LEGEND**
- ⊙ = FOUND 1-1/2" IRON PIPE NO IDENTIFICATION
 - = PERMANENT CONTROL POINT (P.C.P.) - P/X NAIL AND DISK STAMPED "D&W LB 6896"
 - = PERMANENT REFERENCE MONUMENT (PRM) 4" X 4" CONCRETE MONUMENT - D&W INC. PRM LB 6896" (UNLESS OTHERWISE NOTED)
 - C2 = CURVE NUMBER
 - L1 = LINE NUMBER
 - A.E. = ACCESS EASEMENT
 - D.E. = DRAINAGE EASEMENT
 - P.U.E. = PUBLIC UTILITY EASEMENT
 - I.E. = IRRIGATION EASEMENT
 - P.C.M. = FOUND 4"x4" CONCRETE MONUMENT - NO IDENTIFICATION
 - LB = LICENSED BUSINESS
 - LS = LAND SURVEYOR
 - (NR) = NON-RADIAL LINE
 - O/A = OVERALL
 - O.R.B. = OFFICIAL RECORDS BOOK
 - PSM = PROFESSIONAL SURVEYOR AND MAPPER
- ALL INTERIOR MONUMENTATION WILL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH IN FLORIDA STATUTES CHAPTER 177, LAND BOUNDARIES, PART 1, PLATTING, SECTION 177.091.

THIS INSTRUMENT WAS PREPARED BY
DAVID S. DAGOSTINO, PSM #5762

DAGOSTINO GEOSPATIAL, INC.
10981 BONITA BEACH ROAD SE
BONITA SPRINGS, FL 34135
(239) 352-6085 WWW.DAGEO.COM
FLORIDA BUSINESS LICENSE NO. LB 6896

POINT OF COMMENCEMENT
NORTHWEST CORNER SECTION 8
TOWNSHIP 43 SOUTH RANGE 29 EAST
NORTHING = 862952.883
EASTING = 507853.888

6 SUNSET DRIVE
SECTION 6 TOWNSHIP 43 SOUTH RANGE 29 EAST
SECTION 5 TOWNSHIP 43 SOUTH RANGE 29 EAST

SEE SHEET 6 OF 6

SOUTHWEST CORNER OF LOT 3,
L.V. HULL'S SUBDIVISION
PLAT BOOK 3, PAGE 12

SOUTH LINE OF VACATED PORTION OF SUNSET DRIVE
CITY OF LABELLE COMMISSIONERS
RESOLUTION NO. 2019-06, RECORDED IN
INSTRUMENT NUMBER 201926006534

SUNSET DRIVE
F.C.M. LIMITS OF PLAT N00°44'32"W 146.74'

SEE SHEET 3 OF 6

BELLE ARBOR WEST RE-PLAT

A REPLAT OF BELLE ARBOR WEST RECORDED IN PLAT BOOK 6, PAGES 217 THROUGH 222, OF THE PUBLIC RECORDS OF HENDRY COUNTY, FLORIDA, AND A PORTION OF SHADY OAKS AVENUE, LYING IN SECTIONS 7 AND 8, TOWNSHIP 43 SOUTH, RANGE 29 EAST, CITY OF LABELLE, HENDRY COUNTY, FLORIDA;

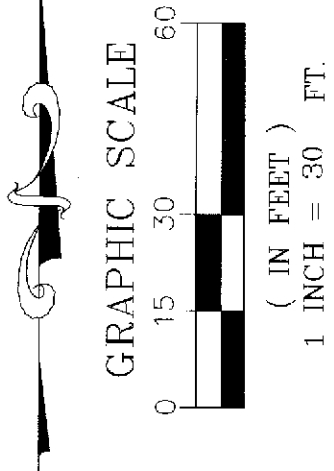
SEE SHEET 6 OF 6

SEE SHEET 2 OF 6

SEE SHEET 4 OF 6

PLAT BOOK 6 PAGE 229

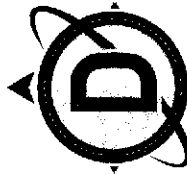
SHEET 3 OF 6



LINE TABLE		
LINE	BEARING	DISTANCE
L1	S00°44'13"E	30.06'
L2	S89°14'48"W	14.79'

CURVE	DELTA	RADIUS	ARC	CHORD BEARING	CHORD
C1	97.5349	35.00	42.58	N48°25'30"	37.62
C2	97.5349	35.00	42.58	N48°25'30"	37.62
C3	97.5349	35.00	42.58	N48°25'30"	37.62
C4	135.1448	20.00	47.21	S82°11'15"	36.96
C5	57.6936	15.00	13.83	N41°15'30"	13.85
C6	90.0270	20.00	31.71	S41°14'14"	28.38
C7	97.5349	35.00	42.58	N48°25'30"	37.62
C8	97.5349	35.00	42.58	N48°25'30"	37.62
C9	97.5349	35.00	42.58	N48°25'30"	37.62
C10	97.5349	35.00	42.58	N48°25'30"	37.62
C11	97.5349	35.00	42.58	N48°25'30"	37.62
C12	97.5349	35.00	42.58	N48°25'30"	37.62
C13	97.5349	35.00	42.58	N48°25'30"	37.62
C14	97.5349	35.00	42.58	N48°25'30"	37.62
C15	97.5349	35.00	42.58	N48°25'30"	37.62
C16	97.5349	35.00	42.58	N48°25'30"	37.62
C17	97.5349	35.00	42.58	N48°25'30"	37.62
C18	97.5349	35.00	42.58	N48°25'30"	37.62
C19	97.5349	35.00	42.58	N48°25'30"	37.62
C20	97.5349	35.00	42.58	N48°25'30"	37.62
C21	97.5349	35.00	42.58	N48°25'30"	37.62
C22	97.5349	35.00	42.58	N48°25'30"	37.62
C23	97.5349	35.00	42.58	N48°25'30"	37.62
C24	97.5349	35.00	42.58	N48°25'30"	37.62
C25	97.5349	35.00	42.58	N48°25'30"	37.62
C26	97.5349	35.00	42.58	N48°25'30"	37.62
C27	97.5349	35.00	42.58	N48°25'30"	37.62
C28	97.5349	35.00	42.58	N48°25'30"	37.62
C29	97.5349	35.00	42.58	N48°25'30"	37.62
C30	97.5349	35.00	42.58	N48°25'30"	37.62
C31	97.5349	35.00	42.58	N48°25'30"	37.62
C32	97.5349	35.00	42.58	N48°25'30"	37.62
C33	97.5349	35.00	42.58	N48°25'30"	37.62
C34	97.5349	35.00	42.58	N48°25'30"	37.62
C35	97.5349	35.00	42.58	N48°25'30"	37.62
C36	97.5349	35.00	42.58	N48°25'30"	37.62
C37	97.5349	35.00	42.58	N48°25'30"	37.62
C38	97.5349	35.00	42.58	N48°25'30"	37.62
C39	97.5349	35.00	42.58	N48°25'30"	37.62
C40	97.5349	35.00	42.58	N48°25'30"	37.62
C41	97.5349	35.00	42.58	N48°25'30"	37.62
C42	97.5349	35.00	42.58	N48°25'30"	37.62
C43	97.5349	35.00	42.58	N48°25'30"	37.62
C44	97.5349	35.00	42.58	N48°25'30"	37.62
C45	97.5349	35.00	42.58	N48°25'30"	37.62
C46	97.5349	35.00	42.58	N48°25'30"	37.62
C47	97.5349	35.00	42.58	N48°25'30"	37.62
C48	97.5349	35.00	42.58	N48°25'30"	37.62
C49	97.5349	35.00	42.58	N48°25'30"	37.62
C50	97.5349	35.00	42.58	N48°25'30"	37.62
C51	97.5349	35.00	42.58	N48°25'30"	37.62
C52	97.5349	35.00	42.58	N48°25'30"	37.62
C53	97.5349	35.00	42.58	N48°25'30"	37.62
C54	97.5349	35.00	42.58	N48°25'30"	37.62
C55	97.5349	35.00	42.58	N48°25'30"	37.62
C56	97.5349	35.00	42.58	N48°25'30"	37.62
C57	97.5349	35.00	42.58	N48°25'30"	37.62
C58	97.5349	35.00	42.58	N48°25'30"	37.62
C59	97.5349	35.00	42.58	N48°25'30"	37.62
C60	97.5349	35.00	42.58	N48°25'30"	37.62
C61	97.5349	35.00	42.58	N48°25'30"	37.62
C62	97.5349	35.00	42.58	N48°25'30"	37.62
C63	97.5349	35.00	42.58	N48°25'30"	37.62
C64	97.5349	35.00	42.58	N48°25'30"	37.62
C65	97.5349	35.00	42.58	N48°25'30"	37.62
C66	97.5349	35.00	42.58	N48°25'30"	37.62
C67	97.5349	35.00	42.58	N48°25'30"	37.62
C68	97.5349	35.00	42.58	N48°25'30"	37.62
C69	97.5349	35.00	42.58	N48°25'30"	37.62
C70	97.5349	35.00	42.58	N48°25'30"	37.62
C71	97.5349	35.00	42.58	N48°25'30"	37.62
C72	97.5349	35.00	42.58	N48°25'30"	37.62
C73	97.5349	35.00	42.58	N48°25'30"	37.62
C74	97.5349	35.00	42.58	N48°25'30"	37.62
C75	97.5349	35.00	42.58	N48°25'30"	37.62
C76	97.5349	35.00	42.58	N48°25'30"	37.62
C77	97.5349	35.00	42.58	N48°25'30"	37.62
C78	97.5349	35.00	42.58	N48°25'30"	37.62
C79	97.5349	35.00	42.58	N48°25'30"	37.62
C80	97.5349	35.00	42.58	N48°25'30"	37.62
C81	97.5349	35.00	42.58	N48°25'30"	37.62
C82	97.5349	35.00	42.58	N48°25'30"	37.62
C83	97.5349	35.00	42.58	N48°25'30"	37.62
C84	97.5349	35.00	42.58	N48°25'30"	37.62
C85	97.5349	35.00	42.58	N48°25'30"	37.62
C86	97.5349	35.00	42.58	N48°25'30"	37.62
C87	97.5349	35.00	42.58	N48°25'30"	37.62
C88	97.5349	35.00	42.58	N48°25'30"	37.62
C89	97.5349	35.00	42.58	N48°25'30"	37.62
C90	97.5349	35.00	42.58	N48°25'30"	37.62
C91	97.5349	35.00	42.58	N48°25'30"	37.62
C92	97.5349	35.00	42.58	N48°25'30"	37.62
C93	97.5349	35.00	42.58	N48°25'30"	37.62
C94	97.5349	35.00	42.58	N48°25'30"	37.62
C95	97.5349	35.00	42.58	N48°25'30"	37.62
C96	97.5349	35.00	42.58	N48°25'30"	37.62
C97	97.5349	35.00	42.58	N48°25'30"	37.62
C98	97.5349	35.00	42.58	N48°25'30"	37.62
C99	97.5349	35.00	42.58	N48°25'30"	37.62
C100	97.5349	35.00	42.58	N48°25'30"	37.62

THIS INSTRUMENT WAS PREPARED BY
DAVID S. DAGOSTINO, PSM #5762



DAGOSTINO GEOSPATIAL, INC.
10981 BONITA BEACH ROAD SE
BONITA SPRINGS, FL 34135
(239) 352-6085 WWW.DAGGEO.COM
FLORIDA BUSINESS LICENSE NO. LB 68996

LEGEND

(A) = FOUND 1-1/2" IRON PIPE NO IDENTIFICATION
 (B) = PERMANENT CONTROL POINT (P.C.P.) -
 P/K NAIL AND DISK STAMPED "D&W LB 6896"
 (C) = PERMANENT REFERENCE MONUMENT (PRM)
 4" X 4" CONCRETE MONUMENT - "D&W INC. PRM LB 6896"
 (UNLESS OTHERWISE NOTED)

A.E. = ACCESS EASEMENT
 D.E. = DRAINAGE EASEMENT
 I.E. = IRRIGATION EASEMENT
 P.U.E. = PUBLIC UTILITY EASEMENT

C1 = CURVE NUMBER
L1 = LINE NUMBER
LB = LICENSED BUSINESS
(NR) = NON-RADIAL LINE
O/A = OVERALL DISTANCE

PSM = PROFESSIONAL SURVEYOR AND MAPPER
ALL INTERIOR MONUMENTATION WILL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH IN FLORIDA
STATUTES CHAPTER 177, LAND BOUNDARIES, PART 1, PLATTING, SECTION 177.091.

-A00-0037.000
LANDING, LLC
F THIS PLAT)

9-43-05
CY MOSS
T PART 0

BELLE ARBOR WEST RE-PLAT

A REPLAT OF BELLE ARBOR WEST RECORDED IN PLAT BOOK 6, PAGES 217 THROUGH 222, OF THE PUBLIC RECORDS OF HENDRY COUNTY, FLORIDA,
AND A PORTION OF SHADY OAKS AVENUE,
LYING IN SECTIONS 7 AND 8, TOWNSHIP 43 SOUTH, RANGE 29 EAST,
CITY OF LABELLE, HENDRY COUNTY, FLORIDA

SEE SHEET 3 OF 6

TAX PARCEL
#02-29-43-02-300-0000-001.3
FALCON EYRIE FARMS, L.C.
(NOT PART OF THIS PLAT)

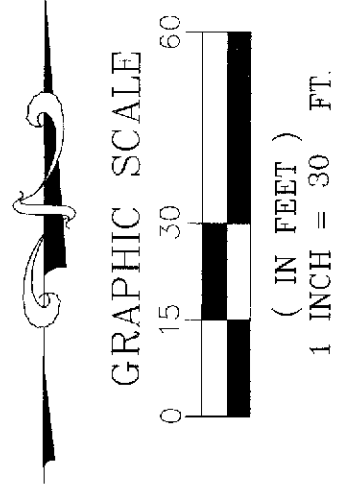
NOTE:
SEE SHEET 5 OF
FOR 5' UTILITY
EASEMENT DETAIL.

STATE ROAD 80
PER. FLORIDA DEPARTMENT OF TRANSPORTATION
SECTION 0701-108

SEE SHEET 5 OF 6

PLAT BOOK 6 PAGE 230

SHEET 4 OF 6



LEGEND

- = PERMANENT CONTROL POINT (P.C.P.) -
P/K NAIL AND DISK STAMPED "D&W LB 6896"
- = PERMANENT REFERENCE MONUMENT (PRM)
4" X 4" CONCRETE MONUMENT - "D&W INC. PRM LB 6896"
(UNLESS OTHERWISE NOTED)

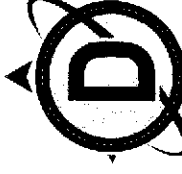
C7 = CURVE NUMBER
L3 = LINE NUMBER
A.E. = ACCESS EASEMENT
D.E. = DRAINAGE EASEMENT
I.E. = IRRIGATION EASEMENT
P.U.E. = PUBLIC UTILITY EASEMENT
(NR) = NON-RADIAL LINE
LB = LICENSED BUSINESS
O.R.B. = OFFICIAL RECORDS BOOK

PSM = PROFESSIONAL SURVEYOR AND MAPPER
ALL INTERIOR MONUMENTATION WILL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH
IN FLORIDA STATUTES CHAPTER 177, LAND BOUNDARIES, PART 1, PLATTING,
SECTION 177.091.

LINE TABLE		
LINE	BEARING	DISTANCE
L3	S50°53'56"W	50.20'
L4	N50°53'56"E	10.01'

CURVE	DELTA	RADIUS	ARC	CHORD BEARING	CHORD
C1	86°11'28"	15.00'	21.65'	N06°17'31"E	20.85'
C2	86°11'28"	15.00'	11.815'	N04°48'18"E	13.35'
C3	58°34'42"	21.60'	21.47'	N08°38'15"E	20.85'
C10	90°20'30"	21.00'	39.99'	N08°38'15"E	29.70'
C11	90°20'30"	21.00'	39.99'	S08°38'15"E	29.70'
C12	90°20'30"	21.00'	39.99'	S08°38'15"E	29.70'
C13	90°20'30"	21.00'	39.99'	S08°38'15"E	29.70'
C14	90°20'30"	31.00'	21.41'	S08°45'32"E	21.04'
C15	90°20'30"	65.00'	69.88'	S08°45'32"E	69.84'
C16	90°20'30"	45.00'	69.88'	S08°45'32"E	69.84'
C17	90°20'30"	45.00'	41.49'	N04°48'18"E	40.24'
C18	90°24'11"	25.00'	39.37'	N04°48'18"E	35.43'
C19	90°24'11"	25.00'	39.37'	S04°48'18"E	35.43'
C20	90°24'11"	11.00'	12.25'	S08°34'12"E	11.56'
C21	90°20'30"	83.00'	76.53'	N04°48'18"E	73.84'
C22	90°24'11"	83.00'	86.65'	N04°48'18"E	86.95'
C23	90°20'30"	11.00'	12.25'	N08°34'12"E	11.56'
C24	90°20'30"	21.00'	39.99'	N08°34'12"E	29.70'
C25	90°24'11"	51.00'	76.57'	S04°48'18"E	72.81'
C26	90°24'11"	51.00'	76.57'	S04°48'18"E	72.81'
C27	90°24'11"	205.00'	59.85'	N04°48'18"E	56.94'
C28	84°44'37"	83.00'	12.65'	N06°17'31"E	12.65'
C29	27°59'19"	83.00'	40.55'	N06°17'31"E	40.14'
C30	16°25'45"	83.00'	23.37'	N05°17'03"E	23.34'
C31	29°59'03"	21.00'	9.48'	N07°14'48"E	9.40'
C32	60°29'35"	21.00'	31.69'	N07°14'48"E	31.83'
C33	74°32'18"	51.00'	33.30'	S07°14'48"E	33.30'
C34	74°32'18"	51.00'	33.30'	S07°14'48"E	33.30'
C35	34°42'48"	61.50'	39.77'	S09°14'20"E	39.66'
C36	34°42'48"	61.50'	46.85'	S09°14'20"E	46.88'
C37	11°17'12"	108.00'	15.19'	N08°10'01"E	15.17'
C38	60°57'52"	68.60'	71.69'	S09°24'51"E	73.05'
C39	70°24'22"	50.00'	35.66'	S19°19'00"E	35.06'
C40	70°24'22"	50.00'	70.45'	S04°53'37"E	70.40'
C41	64°34'36"	63.60'	35.34'	S04°53'37"E	35.26'
C42	64°34'36"	63.60'	35.34'	S04°53'37"E	35.26'
C43	41°42'47"	270.65'	209.28'	S07°43'30"E	205.23'
C44	07°51'19"	318.44'	52.68'	S05°02'30"E	52.68'
C45	07°51'19"	318.44'	47.69'	S05°02'30"E	47.69'

THIS INSTRUMENT WAS PREPARED BY
DAVID S. DAGOSTINO, PSM #5762



DAGOSTINO GEOSPATIAL, INC.
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BONITA SPRINGS, FL 34135
(239) 352-6085 WWW.DAGGEO.COM
FLORIDA BUSINESS LICENSE NO. LB 68996

BELLE ARBOR WEST RE-PLAT

A REPLAT OF BELLE ARBOR WEST RECORDED IN PLAT BOOK 6, PAGES 217 THROUGH 222, OF THE PUBLIC RECORDS OF HENDRY COUNTY, FLORIDA,
AND A PORTION OF SHADY OAKS AVENUE,
LYING IN SECTIONS 7 AND 8, TOWNSHIP 43 SOUTH, RANGE 29 EAST,
CITY OF LABELLE, HENDRY COUNTY, FLORIDA

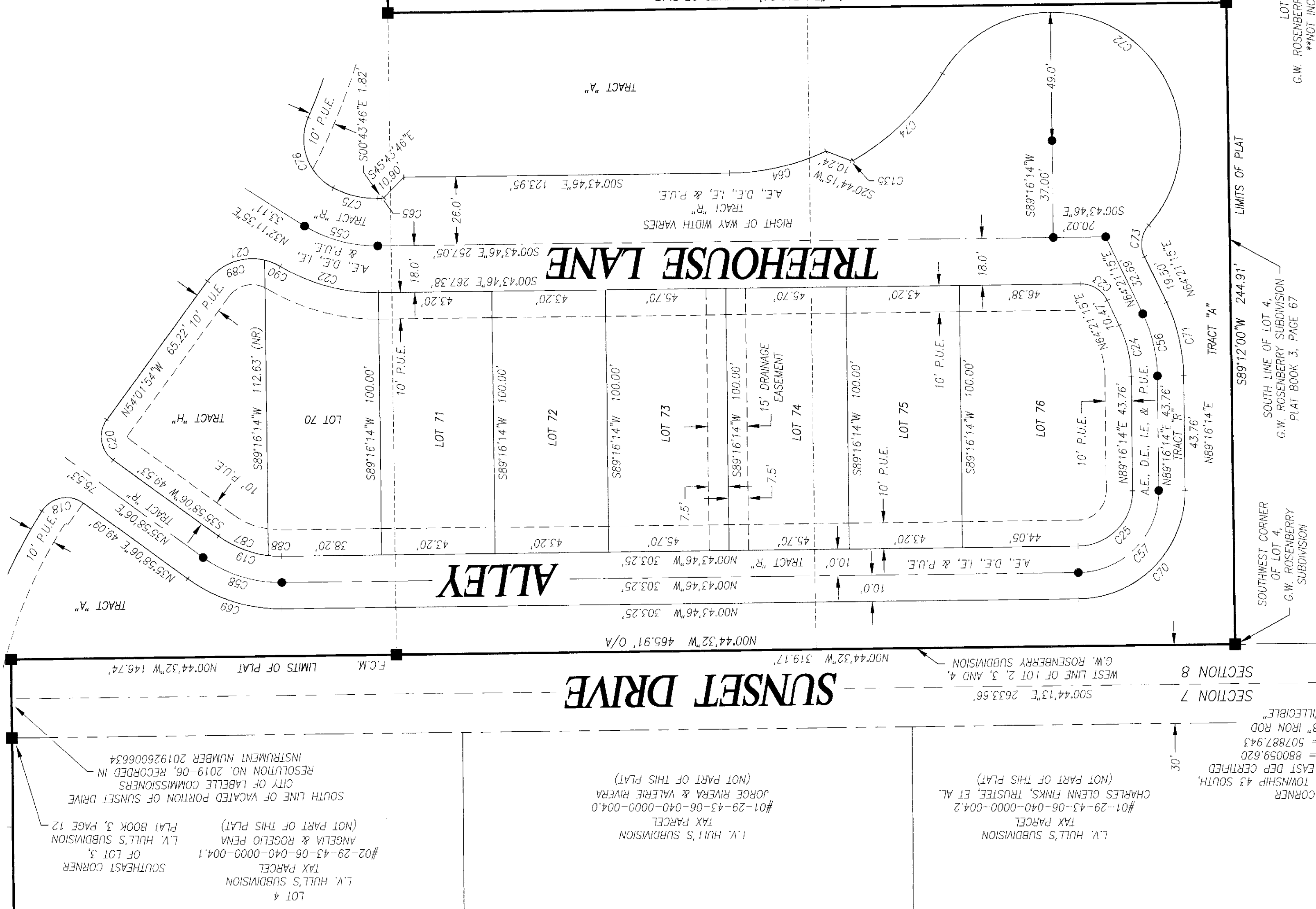
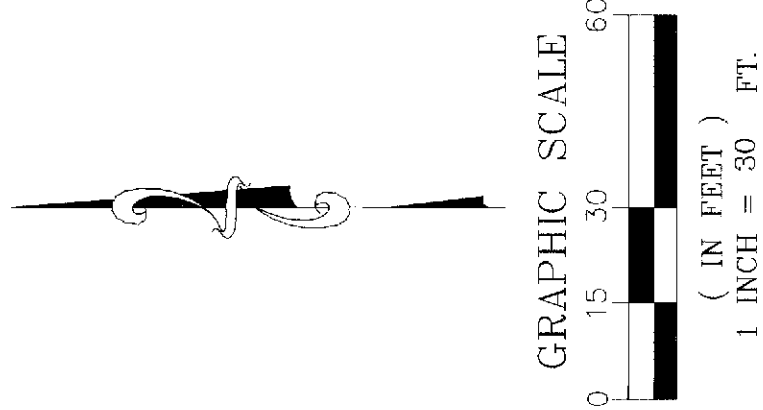
SEE SHEET 2 OF 6

SEE SHEET 3 OF 6

LEGEND

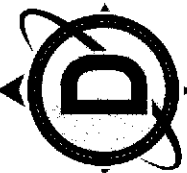
- = PERMANENT CONTROL POINT (P.C.P.) - 7/8" NAIL AND DISK STAMPED "D&W LB 6896"
- = PERMANENT REFERENCE MONUMENT (PRM) 4" X 4" CONCRETE MONUMENT - "D&W INC. PRM LB 6896" (UNLESS OTHERWISE NOTED)

- C18 = CURVE NUMBER
- DEP = FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION
- A.E. = ACCESS EASEMENT
- D.E. = DRAINAGE EASEMENT
- I.E. = IRRIGATION EASEMENT
- P.U.E. = PUBLIC UTILITY EASEMENT
- F.C.M. = FOUND 4" X 4" CONCRETE MONUMENT - NO IDENTIFICATION
- NR = NON-RADIAL LINE
- O/R.B. = OFFICIAL RECORDS BOOK
- O/A = OVERALL
- PSM = PROFESSIONAL SURVEYOR AND MAPPER
- LB = LICENSED BUSINESS
- ALL INTERIOR MONUMENTATION WILL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH IN FLORIDA STATUTES CHAPTER 177, LAND BOUNDARIES, PART I, PLATTING, SECTION 177.091.



CURVE	DELTA	RADIUS	ARC	CHORD BEARING	CHORD
C19	364°53'	40.00'	28.62'	S17°31'10"W	25.18'
C20	90°00'00"	11.00'	17.28'	S86°25'06"W	15.65'
C21	84°58'03"	21.00'	31.13'	N1°33'32"W	28.35'
C22	31°37'56"	71.00'	12.50'	S19°02'11"W	38.70'
C23	65°02'01"	71.00'	12.50'	N3°14'44"E	11.63'
C24	24°35'58"	45.00'	20.00'	N76°48'44"E	19.85'
C25	31°37'56"	53.00'	20.35'	S1°05'51"W	28.88'
C56	24°54'59"	56.00'	24.35'	N76°48'44"E	24.15'
C57	90°00'00"	31.00'	46.89'	S45°43'46"E	43.64'
C58	36°41'53"	50.00'	32.03'	S17°37'10"W	31.48'
C64	24°35'07"	88.00'	37.79'	S1°03'50"E	37.50'
C65	53°00'00"	1.00'	0.74'	S92°33'46"E	0.77'
C66	53°00'00"	6.00'	0.74'	S92°33'46"E	0.77'
C70	90°00'00"	41.00'	64.40'	S45°43'46"E	57.88'
C71	24°54'59"	66.00'	28.70'	N76°48'44"E	28.48'
C72	189°52'56"	49.00'	162.39'	N6°17'13"E	97.64'
C73	68°52'28"	11.00'	12.84'	N82°12'32"W	12.12'
C74	26°39'01"	96.00'	47.92'	S44°21'15"E	47.42'
C75	68°52'08"	35.00'	17.42'	S1°23'18"W	17.19'
C76	24°35'58"	45.00'	20.00'	S1°05'51"W	20.19'
C87	28°12'02"	40.00'	20.61'	S2°11'35"W	20.38'
C88	71°051"	40.00'	5.01'	S92°51'39"W	5.01'
C89	67°11'02"	21.00'	24.64'	N6°25'20"W	23.25'
C90	174°2'56"	21.00'	5.49'	N2°20'24"E	6.47'
C135	504°2'29"	1.00'	0.89'	S04°39'36"E	0.86'

STATE ROAD 80
(HICKPOCHEE AVENUE)



DAGOSTINO GEOSPATIAL, INC.
10981 BONITA BEACH ROAD SE
BONITA SPRINGS, FL 34135
(239) 352-6085 WWW.DAGGEO.COM
FLORIDA BUSINESS LICENSE NO. LB 6896

THIS INSTRUMENT WAS PREPARED BY
DAVID S. DAGOSTINO, PSM #5762

PER FLORIDA DEPARTMENT OF TRANSPORTATION
SECTION 0310-2223

TAX PARCEL
#02-29-43-02-300-0000-002.0
DOUBLE D LEASING, LLC
(NOT PART OF THIS PLAT)

LOT 4
G.W. ROSENBERY SUBDIVISION
(NOT PART OF THIS PLAT)

LOT 5
G.W. ROSENBERY SUBDIVISION
TAX PARCEL #02-29-43-00-0000-004.0
(NOT PART OF THIS PLAT)

WEST 1/4 CORNER
SECTION 8, TOWNSHIP 43 SOUTH,
RANGE 29 EAST DEP CERTIFIED
NORTHING = 880059.620
EASTING = 507987.943
FOUND 5/8" IRON ROD
AND CAP "ILLEGIBLE"

L.V. HULL'S SUBDIVISION
TAX PARCEL
#01-29-43-06-040-0000-004.2
CHARLES GLENN HINKS, TRUSTEE, ET AL.
(NOT PART OF THIS PLAT)

L.V. HULL'S SUBDIVISION
TAX PARCEL
#01-29-43-06-040-0000-004.0
JORGE RIVERA & WALTER RIVERA
(NOT PART OF THIS PLAT)

LOT 4
L.V. HULL'S SUBDIVISION
TAX PARCEL
#02-29-43-06-040-0000-004.1
ANGELIA & ROGELIO PERA
(NOT PART OF THIS PLAT)
SOUTHEAST CORNER
OF LOT 3,
L.V. HULL'S SUBDIVISION
PLAT BOOK 3, PAGE 12
CITY OF LABELLE COMMISSIONERS
RESOLUTION NO. 2019-06, RECORDED IN
INSTRUMENT NUMBER 201926006634

Prepared By and Return To:
Shannon Igielski
Parkway Title, LLC
1101 N. Lake Destiny Rd., Suite 425
Maitland, FL 32751

Order No.: FL-25100003-CMP

Property Appraiser's Parcel I.D. (folio) Number:
2-29-43-08-010-0000-0440

WARRANTY DEED

THIS WARRANTY DEED dated this the 21st day of November, 2025, by WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company, aka WJH LLC, a Delaware limited liability company dba WJHFL LLC, a Foreign Florida limited liability company, existing under the laws of Delaware, and having its principal place of business at 2325 Lakeview Parkway, Suite 600, Alpharetta, GA 30009 (the "Grantor"), to Philip Lyle Cherney, Jr. and Haley Arrianna Russell, husband and wife, whose post office address is 870 Friendship Circle, Labelle, FL 33935 (the "Grantee").

(Wherever used herein the terms "Grantor" and "Grantee" include all the parties to this instrument and the heirs, legal representatives and assigns of individuals, and the successors and assigns of corporations)

WITNESSETH: That the Grantor, for and in consideration of the sum of Ten And No/100 Dollars (\$10.00) and other valuable consideration, receipt whereof is hereby acknowledged, hereby grants, bargains, sells, aliens, remises, releases, conveys, and confirms unto the Grantee, all that certain land situated in County of HENDRY, State of Florida, viz:

Lot 44, BELLE ARBOR WEST RE-PLAT, according to the map or plat thereof, as recorded in Plat Book 6, Pages 227 through 232, of the Public Records of Hendry County, Florida.

Subject to easements, restrictions, reservations and limitations of record, if any.

TOGETHER with all the tenements, hereditaments and appurtenances thereto belonging or in anywise appertaining.

TO HAVE AND TO HOLD the same in Fee Simple forever.

AND the Grantor hereby covenants with said Grantee that the Grantor is lawfully seized of said land in fee simple; that the Grantor has good right and lawful authority to sell and convey said land; that the Grantor hereby fully warrants the title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free of all encumbrances, except taxes accruing subsequent to: 2026.

IN WITNESS WHEREOF, the said Grantor has signed and sealed these presents the day and year first above written.

Signed, sealed and delivered in presence of:

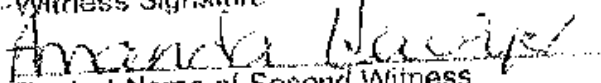

Witness Signature

SARAH SEGREST
Printed Name of First Witness

1101 N. Lake Destiny Road, Suite 425,
Maitland, FL 32751

Address of First Witness

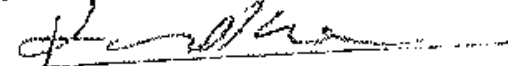

Witness Signature


Printed Name of Second Witness

1101 N. Lake Destiny Road, Suite 425,
Maitland, FL 32751

Address of Second Witness

WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company

BY: 
Karina Juhnke
Closing Manager

Grantor Address:
2325 Lakeview Parkway, Suite 600
Alpharetta, GA 30009

STATE OF FLORIDA
COUNTY OF ORANGE

The foregoing instrument was executed and acknowledged before me by means of ☒ Physical Presence or ☐ Online Notarization this 21 day of November, 2025 by Karina Juhnke as Closing Manager of WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company, (X) who is personally known to me or who has produced _____ (type of identification) as identification.


Notary Public
Printed Name: **SARAH SEGREST**
Commission # _____
My Commission Expires: 4/10/26





Prepared by
Heather Reid, an employee of
First American Title Insurance Company
9102 Southpark Center Loop, Ste 130
Orlando, Florida 32819
(321)558-1700

Return to: Grantee

File No.: 2786534-01

WARRANTY DEED

THIS INDENTURE, executed on **April 09, 2024**, between

LaBelle Landings, LLC, a Florida limited liability company

whose mailing address is: P.O. Box 1710, LaBelle, FL 33795,
hereinafter called the "grantor", and

WJHFL LLC, d/b/a WJH LLC, a Delaware limited liability company

whose mailing address is: 3091 Governors Lake Drive, Suite 300, Norcross, GA 30071,
hereinafter called the "grantee":

(Which terms "Grantor" and "Grantee" shall include singular or plural, corporation or individual, and either sex, and shall include heirs, legal representatives, successors and assigns of the same)

WITNESSETH: The grantor, for and in consideration of the sum of \$10.00 and other good and valuable consideration, receipt whereof is hereby acknowledged, by these presents does grant, bargain, release, convey and confirms unto the grantee, their heirs and assigns, all that certain land situate in **Hendry County, FL**, to-wit:

Lots 33 through 48, BELLE ARBOR WEST RE-PLAT, according to the map or plat thereof, as recorded in Plat Book 6, Pages 227 through 232, of the Public Records of Hendry County, Florida.

Parcel Identification Number: **2084329-01000000330, 2084329-01000000340, 2084329-01000000350, 2084329-01000000360, 2084329-01000000370, 2084329-01000000380, 2084329-01000000390, 2084329-01000000400, 2084329-01000000410, 2084329-01000000420, 2084329-01000000430, 2084329-01000000440, 2084329-01000000450, 2084329-01000000460, 2084329-01000000470, 2084329-01000000480**

The land is not the homestead of the Grantor under the laws and constitution of the State of Florida and neither the Grantor nor any person(s) for whose support the Grantor is responsible reside on or adjacent to the land.

Subject to all reservations, covenants, conditions, restrictions and easements of record and to all applicable zoning ordinances and/or restrictions imposed by governmental authorities, if any.

Together with all the tenements, hereditaments and appurtenances thereto belonging or in any way appertaining.

To Have and to Hold, the same in fee simple forever.

And the grantor hereby covenants with said grantee that the grantor is lawfully seized of said land in fee simple; that the grantor has good right and lawful authority to sell and convey said land; that the grantor hereby fully warrants the title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free of all encumbrances except taxes accruing subsequent to December 31st of 2023.

In Witness Whereof, the grantor has hereunto set their hand(s) and seal(s) the day and year first above written.

LaBelle Landings, LLC, a Florida limited liability company

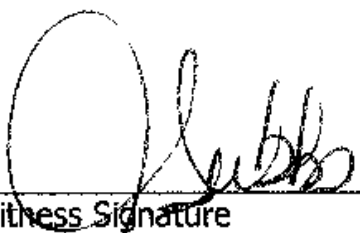
By: 
Name: Daniel M. Peregrin Esq.
Title: Managing Member

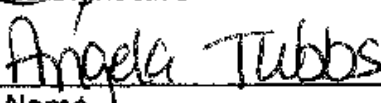
Signed, sealed and delivered in our presence:


Witness Signature


Print Name

Print Post Office Address: _____
870 W. Hickpochee Ave, #1600
Labelle, FL 33935


Witness Signature

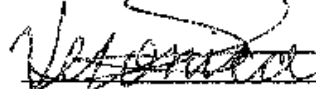

Print Name

Print Post Office Address: _____
870 W. Hickpochee Ave, #1600
Labelle, FL 33935

State of **FLORIDA**

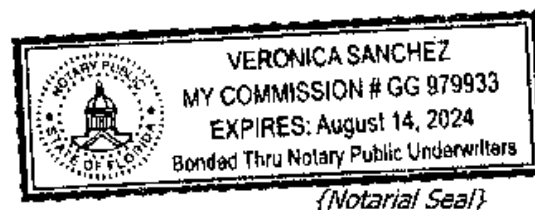
County of Hendry

The Foregoing Instrument Was Acknowledged before me by means of ☒ physical presence or ☐ online notarization, on April 5th, **2024**, by **Daniel M. Peregrin Esq., as Managing Member, on behalf of LaBelle Landings, LLC, a Florida limited liability company**, existing under the laws of the State of **Florida**.


Notary Public

Veronica Sanchez
(Printed Name)

My Commission expires: _____



Personally Known ☒ OR Produced Identification ☐
Type of Identification Produced a valid driver's license

Prepared by:
Melissa Peterson
Florida Hometown Title & Escrow, LLC
870 W Hickpochee Ave #1600, Labelle, Florida 33935

File Number: 01-21-2817

Warranty Deed

Made this 5th day of Aug 2021

By **Falcon Eyrie Farms, L.C**, a Florida limited liability company,
whose address is: P O Box 1710, LaBelle, FL 33975,
hereinafter called the grantor,

to **LaBelle Landings, LLC**, a Florida limited liability company,
whose post office address is: P O Box 1710, LaBelle, FL 33975,
hereinafter called the grantee:

(Whenever used herein the term "grantor" and "grantee" include all the parties to this instrument and the heirs, legal representatives and assigns of individuals, and the successors and assigns of corporations)

Witnesseeth, that the grantor, for and in consideration of the sum of ten and 00/100 dollars and other valuable considerations, receipt whereof is hereby acknowledged, hereby grants, bargains, sells, alicns, remises, releases, conveys and confirms unto the grantee, all that certain land situate in Hendry County, Florida, viz:

Lots 1 through 76, inclusive, and Tracts F-1 and F-2 of Belle Arbor West, according to the plat thereof as recorded in Plat Book 6, Pages 227 - 232, of the Public Records of Hendry County, Florida.

Said property is not the homestead of the Grantor under the laws and constitution of the State of Florida in that neither Grantor nor any members of the household of Grantor reside thereon.

Together with all the tenements, hereditaments and appurtenances thereto belonging or in anywise appertaining.

To Have and to Hold, the same in fee simple forever.

And the grantor hereby covenants with said grantee that the grantor is lawfully seized of said land in fee simple; that the grantor has good right and lawful authority to sell and convey said land; that the grantor hereby fully warrants the title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free of all encumbrances except taxes accruing subsequent to December 31, 2020.

In Witness Whereof, the said grantor has signed and sealed these presents the day and year first above written.

Signed, sealed and delivered in our presence:

Witness #1

Falcon Eyrie Farms, L.C.

Sign/Print Name

Witness #2

Daniel M. Peregrin, as Managing Member

Sign/Print Name

Jennifer J. Peregrin, as Managing Member

State of Florida, County of Hendry

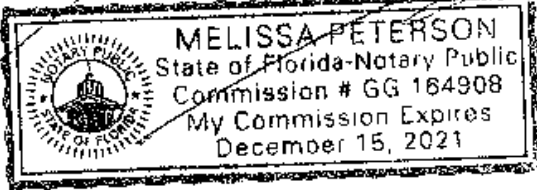
The foregoing instrument was acknowledged before me by means of (X) physical presence or () online notarization, this Aug 5 2021 by Daniel M. Peregrin and Jennifer J. Peregrin, as Managing Members for Falcon Eyrie Farms, L.C., a Florida limited liability company, who is/are personally known to me or who has produced _____ as identification

Notary Public

Print Name:

My Commission

Expires:



(Seal)

Prepared by:
Melissa Peterson
Florida Hometown Title & Escrow, LLC
870 W Hickpochee Ave #1600, Labelle, Florida 33935

File Number: 01-21-2817

Warranty Deed

Made this 5 day of Aug 2021

By **Double D Leasing, LLC, a Florida limited liability company,**
whose address is: P O Box 1710, LaBelle, FL 33975,
hereinafter called the grantor,

to **LaBelle Landings, LLC, a Florida limited liability company,**
whose post office address is: P O Box 1710, LaBelle, FL 33975,
hereinafter called the grantee:

(Whenever used herein the term "grantor" and "grantee" include all the parties to this instrument and the heirs, legal representatives and assigns of individuals, and the successors and assigns of corporations)

Witnesseth, that the grantor, for and in consideration of the sum of ten and 00/100 dollars and other valuable considerations, receipt whereof is hereby acknowledged, hereby grants, bargains, sells, aliens, remises, releases, conveys and confirms unto the grantee, all that certain land situate in Hendry County, Florida, viz:

Lots 1 through 76, inclusive, and Tracts F-1 and F-2 of Belle Arbor West, according to the plat thereof as recorded in Plat Book 6, Pages 227 - 232, of the Public Records of Hendry County, Florida.

Said property is not the homestead of the Grantor under the laws and constitution of the State of Florida in that neither Grantor nor any members of the household of Grantor reside thereon.

Together with all the tenements, hereditaments and appurtenances thereto belonging or in anywise appertaining.

To Have and to Hold, the same in fee simple forever.

And the grantor hereby covenants with said grantee that the grantor is lawfully seized of said land in fee simple; that the grantor has good right and lawful authority to sell and convey said land; that the grantor hereby fully warrants the title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free of all encumbrances except taxes accruing subsequent to December 31, 2020.

In Witness Whereof, the said grantor has signed and sealed these presents the day and year first above written.

Signed, sealed and delivered in our presence:

Witness #1

Sign/Print Name

Witness #2

Sign/Print Name

Double D Leasing, LLC

(Seal)
Daniel M. Peregrin, as Managing Member for Falcon
Eyrie Farms, L.C., as Managing Member

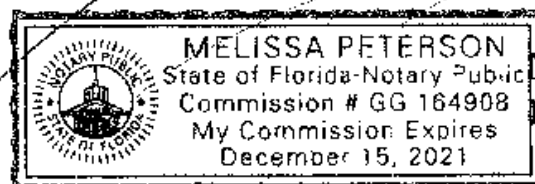
(Seal)
Jennifer J. Peregrin, as Managing Member for Falcon
Eyrie Farms, L.C., as Managing Member

State of Florida, County of Hendry

The foregoing instrument was acknowledged before me by means of (X) physical presence or () online notarization, this Aug 2021 by Daniel M. Peregrin and Jennifer J. Peregrin, as Managing Members for Falcon Eyrie Farms, L.C., a Florida limited liability company, as Managing Member for Double D Leasing, LLC, as Florida limited liability company, who is/are personally known to me or who has produced as identification.

Notary Public
Print Name:

My Commission
Expires:



(Seal)

When recorded, return to:
Inspire Home Loans Inc.
4695 MacArthur Court
Suite 350
Newport Beach, CA 92660

This document was prepared by:
Jonathan Gifford
Inspire Home Loans Inc.
13620 N FM 620 Building A
Suite 175
Austin, TX 78717

Title Order No.: FL-25100003-CMP
Escrow No.: FL-25100003-CMP
LOAN #: 2534903

[Space Above This Line For Recording Data]

MORTGAGE

FHA Case No
095-750067-703

MIN 1013880-0000130373-2
MERS PHONE #: 1-866-679-6377

DEFINITIONS
Words used in multiple sections of this document are defined below and other words are defined under the caption TRANSFER OF RIGHTS IN THE PROPERTY and in Sections 3, 4, 10, 11, 15, 18, 23, and 24. Certain rules regarding the usage of words used in this document are also provided in Section 16.

Parties
(A) "Borrower" is PHILIP LYLE CHERNEY JR. AND HALEY ARRIANNA RUSSELL, HUSBAND AND WIFE

currently residing at 1735 Brantley Rd Apartment 1115, Ft Myers, FL 33907.

Borrower is the mortgagor under this Security Instrument.
(B) "Lender" is Inspire Home Loans Inc.

Lender is a Delaware Corporation, organized and existing under the laws of Delaware. Lender's address is 4695 MacArthur Court, Suite 350, Newport Beach, CA 92660.
The term "Lender" includes any successors and assigns of Lender.
(C) "MERS" is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. MERS is the mortgagee under this Security Instrument. MERS is organized and existing under the laws of Delaware, and has an address and telephone number of PO Box 2026 Flint, MI 48501-2026, tel. (866) 679-MERS.

PLC JR

HAD



LOAN #: 2534903

Documents

(D) "Note" means the promissory note dated **November 21, 2025**, and signed by each Borrower who is legally obligated for the debt under that promissory note, that is in either (i) paper form, using Borrower's written pen and ink signature, or (ii) electronic form, using Borrower's adopted Electronic Signature in accordance with E-SIGN. The Note evidences the legal obligation of each Borrower who signed the Note to pay Lender **TWO HUNDRED THIRTY FIVE THOUSAND SIX HUNDRED FORTY TWO AND NO/100** ***** Dollars (U.S. **\$235,642.00**) plus interest. Each Borrower who signed the Note has

promised to pay this debt in regular monthly payments and to pay the debt in full not later than **December 1, 2055**.

(E) "Riders" means all Riders to this Security Instrument that are signed by Borrower. All such Riders are incorporated into and deemed to be a part of this Security Instrument. The following Riders are to be signed by Borrower [check box as applicable]:

- ☐ Adjustable Rate Rider ☐ Condominium Rider ☒ Planned Unit Development Rider
☐ Other(s) [specify]

(F) "Security Instrument" means this document, which is dated **November 21, 2025**, together with all Riders to this document.

Additional Definitions

(G) "Applicable Law" means all controlling applicable federal, state, and local statutes, regulations, ordinances, and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.

(H) "Community Association Dues, Fees, and Assessments" means all dues, fees, assessments, and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association, or similar organization.

(I) "Default" means: (i) the failure to pay any Periodic Payment or any other amount secured by this Security Instrument on the date it is due; (ii) a breach of any representation, warranty, covenant, obligation, or agreement in this Security Instrument; (iii) any materially false, misleading, or inaccurate information or statement to Lender provided by Borrower or any persons or entities acting at Borrower's direction or with Borrower's knowledge or consent, or failure to provide Lender with material information in connection with the Loan, as described in Section 8; or (iv) any action or proceeding described in Section 11(e).

(J) "Electronic Fund Transfer" means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone or other electronic device capable of communicating with such financial institution, wire transfers, and automated clearinghouse transfers.

(K) "Electronic Signature" means an "Electronic Signature" as defined in E-SIGN.

(L) "E-SIGN" means the Electronic Signatures in Global and National Commerce Act (15 U.S.C. § 7001 et seq.), as it may be amended from time to time, or any applicable additional or successor legislation that governs the same subject matter.

(M) "Escrow Items" means: (a) taxes and assessments and other items which can attain priority over this Security Instrument as a lien or encumbrance on the Property; (b) leasehold payments or ground rents on the Property, if any; (c) premiums for any and all insurance required by Lender under Section 5; and (d) Mortgage Insurance premiums to be paid by Lender to the Secretary or the monthly charge by the Secretary instead of the monthly Mortgage Insurance premiums.

(N) "Loan" means the debt obligation evidenced by the Note, plus interest, costs, expenses, and late charges due under the Note, and all sums due under this Security Instrument, plus interest.

(O) "Loan Servicer" means the entity that has the contractual right to receive Borrower's Periodic Payments and any other payments made by Borrower, and administers the Loan on behalf of Lender. Loan Servicer does not include a sub-servicer, which is an entity that may service the Loan on behalf of the Loan Servicer.

(P) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.

(Q) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or Default on, the Loan.

(R) "Partial Payment" means any payment by Borrower, other than a voluntary prepayment permitted under the Note, which is less than a full outstanding Periodic Payment.

(S) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3.

(T) "Property" means the property described below under the heading "TRANSFER OF RIGHTS IN THE PROPERTY."

(U) "Rents" means all amounts received by or due Borrower in connection with the lease, use, and/or occupancy of the Property by a party other than Borrower.

(V) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. § 2601 et seq.) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they may be amended from time to time, or any additional or successor federal legislation or regulation that governs the same subject matter. When used in this Security Instrument, "RESPA" refers to all requirements and restrictions that would apply to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

PLC JR

HAR

Initials:

FLORIDA Single Family - Fannie Mae/Freddie Mac UNIFORM INSTRUMENT (MERS) Form 3010 07/2021 (Rev. 7/23)
Modified for FHA 1/2023 (HUD Handbook 4000.1)
ICE Mortgage Technology, Inc.

Page 2 of 13

FLFH23DE 1223
FLFDEED (CLS)
11/18/2025 10:55 AM PST



LOAN #: 2534903

(W) "Secretary" means the Secretary of the United States Department of Housing and Urban Development or his designee.
(X) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

This Security Instrument secures to Lender (i) the repayment of the Loan, and all renewals, extensions, and modifications of the Note, and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower mortgages, grants, and conveys to MERS (solely as nominee for Lender and Lender's successors and assigns) and to the successors and assigns of MERS, with power of sale, the following described property located in the County of Hendry:

Lot 44, BELLE ARBOR WEST RE-PLAT, according to the map or plat thereof, as recorded in Plat Book 6, Pages 227 through 232, of the Public Records of Hendry County, Florida.

which currently has the address of 970 Friendship Circle, Labelle [Street] [City]

Florida 33935 ("Property Address");
[Zip Code]

TOGETHER WITH all the improvements now or subsequently erected on the property, including replacements and additions to the improvements on such property, all property rights, including, without limitation, all easements, appurtenances, royalties, mineral rights, oil or gas rights or profits, water rights, and fixtures now or subsequently a part of the property. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's successors and assigns) has the right to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property, and to take any action required of Lender including, but not limited to, releasing and canceling this Security Instrument.

BORROWER REPRESENTS, WARRANTS, COVENANTS, AND AGREES that: (i) Borrower lawfully owns and possesses the Property conveyed in this Security Instrument in fee simple or lawfully has the right to use and occupy the Property under a leasehold estate; (ii) Borrower has the right to mortgage, grant, and convey the Property or Borrower's leasehold interest in the Property; and (iii) the Property is unencumbered, and not subject to any other ownership interest in the Property except for encumbrances and ownership interests of record. Borrower warrants generally the title to the Property and covenants and agrees to defend the title to the Property against all claims and demands, subject to any encumbrances and ownership interests of record as of Loan closing.

THIS SECURITY INSTRUMENT combines uniform covenants for national use with limited variations and non-uniform covenants that reflect specific Florida state requirements to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. **Payment of Principal, Interest, Escrow Items, and Late Charges.** Borrower will pay each Periodic Payment when due. Borrower will also pay any late charges due under the Note, and any other amounts due under this Security Instrument. Payments due under the Note and this Security Instrument must be made in U.S. currency. If any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check, or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a U.S. federal agency, instrumentality, or entity; or (d) Electronic Fund Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 15. Lender may accept or return any Partial Payments in its sole discretion pursuant to Section 2.

Any offset or claim that Borrower may have now or in the future against Lender will not relieve Borrower from making the full amount of all payments due under the Note and this Security Instrument or performing the covenants and agreements secured by this Security Instrument.

Initials: PLC JR HRC



LOAN #: 2534903

2. Acceptance and Application of Payments or Proceeds.

(a) **Acceptance and Application of Partial Payments.** Lender may accept and either apply or hold in suspense Partial Payments in its sole discretion in accordance with this Section 2. Lender is not obligated to accept any Partial Payments or to apply any Partial Payments at the time such payments are accepted, and also is not obligated to pay interest on such unapplied funds. Lender may hold such unapplied funds until Borrower makes payment sufficient to cover a full Periodic Payment, at which time the amount of the full Periodic Payment will be applied to the Loan. If Borrower does not make such a payment within a reasonable period of time, Lender will either apply such funds in accordance with this Section 2 or return them to Borrower. If not applied earlier, Partial Payments will be credited against the total amount due under the Loan in calculating the amount due in connection with any foreclosure proceeding, payoff request, loan modification, or reinstatement. Lender may accept any payment insufficient to bring the Loan current without waiver of any rights under this Security Instrument or prejudice to its rights to refuse such payments in the future.

(b) **Order of Application of Partial Payments and Periodic Payments.** Except as otherwise described in this Section 2, all payments accepted and applied by Lender shall be applied in the following order of priority: First, to the Mortgage Insurance premiums to be paid by Lender to the Secretary or the monthly charge by the Secretary instead of the monthly mortgage insurance premiums; Second, to any taxes, special assessments, leasehold payments or ground rents, and fire, flood and other hazard insurance premiums, as required; Third, to interest due under the Note; Fourth, to amortization of the principal of the Note; and, Fifth, to late charges due under the Note.

If Lender receives a payment from Borrower in the amount of one or more Periodic Payments and the amount of any late charge due for a delinquent Periodic Payment, the payment may be applied to the delinquent payment and the late charge.

When applying payments, Lender will apply such payments in accordance with Applicable Law.

(c) **Voluntary Prepayments.** Voluntary prepayments will be applied as described in this Note.

(d) **No Change to Payment Schedule.** Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note will not extend or postpone the due date, or change the amount, of the Periodic Payments.

3. Funds for Escrow Items.

(a) **Escrow Requirement; Escrow Items.** Borrower must pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum of money to provide for payment of amounts due for all Escrow Items (the "Funds"). The amount of the Funds required to be paid each month may change during the term of the Loan. Borrower must promptly furnish to Lender all notices or invoices of amounts to be paid under this Section 3.

(b) **Payment of Funds; Waiver.** Borrower must pay Lender the Funds for Escrow Items unless Lender waives this obligation in writing. Lender may waive this obligation for any Escrow Item at any time. In the event of such waiver, Borrower must pay directly, when and where payable, the amounts due for any Escrow Items subject to the waiver. If Lender has waived the requirement to pay Lender the Funds for any or all Escrow Items, Lender may require Borrower to provide proof of direct payment of those items within such time period as Lender may require. Borrower's obligation to make such timely payments and to provide proof of payment is deemed to be a covenant and agreement of Borrower under this Security Instrument. If Borrower is obligated to pay Escrow Items directly pursuant to a waiver, and Borrower fails to pay timely the amount due for an Escrow Item, Lender may exercise its rights under Section 9 to pay such amount and Borrower will be obligated to repay to Lender any such amount in accordance with Section 9.

Lender may withdraw the waiver as to any or all Escrow Items at any time by giving a notice in accordance with Section 13; upon such withdrawal, Borrower must pay to Lender all Funds for such Escrow Items, and in such amounts, that are then required under this Section 3.

(c) **Amount of Funds; Application of Funds.** Lender may, at any time, collect and hold Funds in an amount up to, but not in excess of, the maximum amount a lender can require under RESPA. Lender will estimate the amount of Funds due in accordance with Applicable Law.

The Funds will be held in an institution whose deposits are insured by a U.S. federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender will apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender may not charge Borrower for: (i) holding and applying the Funds; (ii) annually analyzing the escrow account; or (iii) verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless Lender and Borrower agree in writing or Applicable Law requires interest to be paid on the Funds, Lender will not be required to pay Borrower any interest or earnings on the Funds. Lender will give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

(d) **Surplus; Shortage and Deficiency of Funds.** In accordance with RESPA, if there is a surplus of Funds held in escrow, Lender will account to Borrower for such surplus. If Borrower's Periodic Payment is delinquent by more than 30 days, Lender may retain the surplus in the escrow account for the payment of the Escrow Items. If there is a shortage or deficiency of funds held in escrow, Lender will notify Borrower and Borrower will pay to Lender the amount necessary to make up the shortage or deficiency in accordance with RESPA.

Upon payment in full of all sums secured by this Security Instrument, Lender will promptly refund to Borrower any Funds held by Lender.

4. Charges; Liens. Borrower must pay (a) all taxes, assessments, charges, fines, and impositions attributable to the Property which have priority or may attain priority over this Security Instrument, (b) leasehold payments or ground rents on the Property, if any, and (c) Community Association Dues, Fees, and Assessments, if any. If any of these items are Escrow Items, Borrower will pay them in the manner provided in Section 3.

Borrower must promptly discharge any lien that has priority or may attain priority over this Security Instrument unless Borrower: (aa) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender,

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but only so long as Borrower is performing under such agreement, (b) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which Lender determines, in its sole discretion, operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (c) secures from the holder of the lien an agreement satisfactory to Lender that subordinates the lien to this Security Instrument (collectively, the "Required Actions"). If Lender determines that any part of the Property is subject to a lien that has priority or may attain priority over this Security Instrument and Borrower has not taken any of the Required Actions in regard to such lien, Lender may give Borrower a notice identifying the lien. Within 10 days after the date on which that notice is given, Borrower must satisfy the lien or take one or more of the Required Actions.

5. Property Insurance.

(a) Insurance Requirement; Coverages. Borrower must keep the improvements now existing or subsequently erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes, winds, and floods, for which Lender requires insurance. Borrower must maintain the types of insurance Lender requires in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan, and may exceed any minimum coverage required by Applicable Law. Borrower may choose the insurance carrier providing the insurance, subject to Lender's right to disapprove Borrower's choice, which right will not be exercised unreasonably.

(b) Failure to Maintain Insurance. If Lender has a reasonable basis to believe that Borrower has failed to maintain any of the required insurance coverages described above, Lender may obtain insurance coverage, at Lender's option and at Borrower's expense. Unless required by Applicable Law, Lender is under no obligation to advance premiums for, or to seek to reinstate, any prior lapsed coverage obtained by Borrower. Lender is under no obligation to purchase any particular type or amount of coverage and may select the provider of such insurance in its sole discretion. Before purchasing such coverage, Lender will notify Borrower if required to do so under Applicable Law. Any such coverage will insure Lender, but might not protect Borrower. Borrower's equity in the Property, or the contents of the Property, against any risk, hazard, or liability and might provide greater or lesser coverage than was previously in effect, but not exceeding the coverage required under Section 5(a). Borrower acknowledges that the cost of the insurance coverage so obtained may significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender for costs associated with reinstating Borrower's insurance policy or with placing new insurance under this Section 5 will become additional debt of Borrower secured by this Security Instrument. Those amounts will bear interest at the Note rate from the date of disbursement and will be payable, with such interest, upon notice from Lender to Borrower requesting payment.

(c) Insurance Policies. All insurance policies required by Lender and renewals of such policies: (i) will be subject to Lender's right to disapprove such policies; (ii) must include a standard mortgage clause; and (iii) must name Lender as mortgagee and/or as an additional loss payee. Lender will have the right to hold the policies and renewal certificates. If Lender requires, Borrower will promptly give to Lender proof of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy must include a standard mortgage clause and must name Lender as mortgagee and/or as an additional loss payee.

(d) Proof of Loss; Application of Proceeds. In the event of loss, Borrower must give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Any insurance proceeds, whether or not the underlying insurance was required by Lender, will be applied to restoration or repair of the Property, if Lender deems the restoration or repair to be economically feasible and determines that Lender's security will not be lessened by such restoration or repair.

If the Property is to be repaired or restored, Lender will disburse from the insurance proceeds any initial amounts that are necessary to begin the repair or restoration, subject to any restrictions applicable to Lender. During the subsequent repair and restoration period, Lender will have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction (which may include satisfying Lender's minimum eligibility requirements for persons repairing the Property, including, but not limited to, licensing, bond, and insurance requirements) provided that such inspection must be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property, or payable jointly to both. Lender will not be required to pay Borrower any interest or earnings on such insurance proceeds unless Lender and Borrower agree in writing or Applicable Law requires otherwise. Fees for public adjusters, or other third parties, retained by Borrower will not be paid out of the insurance proceeds and will be the sole obligation of Borrower.

If Lender deems the restoration or repair not to be economically feasible or Lender's security would be lessened by such restoration or repair, the insurance proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds will be applied in the order that Partial Payments are applied in Section 2(b).

(e) Insurance Settlements; Assignment of Proceeds. If Borrower abandons the Property, Lender may file, negotiate, and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 26 or otherwise, Borrower is unconditionally assigning to Lender: (i) Borrower's rights to any insurance proceeds in an amount not to exceed the amounts unpaid under the Note and this Security Instrument, and (ii) any other of Borrower's rights (other than the right to any refund of unearned premiums paid by Borrower) under all insurance policies covering the Property, to the extent that such rights are applicable to the coverage of the Property. If Lender files, negotiates, or settles a claim, Borrower agrees that any insurance proceeds may be made payable directly to Lender without the need to include Borrower.

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as an additional loss payee. Lender may use the insurance proceeds either to repair or restore the Property (as provided in Section 5(d)) or to pay amounts unpaid under the Note or this Security Instrument, whether or not then due.

6. Occupancy. Borrower must occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution of this Security Instrument and must continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless: (1) Lender otherwise agrees in writing, which consent will not be unreasonably withheld; (2) Lender determines that this requirement shall cause undue hardship for the Borrower; or (3) extenuating circumstances exist which are beyond Borrower's control.

7. Preservation, Maintenance, and Protection of the Property; Inspections. Borrower will not destroy, damage, or impair the Property, allow the Property to deteriorate, or commit waste on the Property. Borrower must maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless Lender determines pursuant to Section 5 that repair or restoration is not economically feasible, Borrower will promptly repair the Property if damaged to avoid further deterioration or damage.

If insurance or condemnation proceeds are paid to Lender in connection with damage to the Property, Borrower will be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property or payable jointly to both. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower remains obligated to complete such repair or restoration.

If condemnation proceeds are paid in connection with the taking of the property, Lender shall apply such proceeds to the reduction of the indebtedness under the Note and this Security Instrument, first to any delinquent amounts, and then to payment of principal. Any application of the proceeds to the principal shall not extend or postpone the due date of the monthly payments or change the amount of such payments.

Lender may make reasonable entries upon and inspections of the Property. If Lender has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender will give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower will be in Default if, during the Loan application process, Borrower or any persons or entities acting at Borrower's direction or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan, including, but not limited to, overstating Borrower's income or assets, understating or failing to provide documentation of Borrower's debt obligations and liabilities, and misrepresenting Borrower's occupancy or intended occupancy of the Property as Borrower's principal residence.

9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument

(a) Protection of Lender's Interest. If: (i) Borrower fails to perform the covenants and agreements contained in this Security Instrument; (ii) there is a legal proceeding or government order that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien that has priority or may attain priority over this Security Instrument, or to enforce laws or regulations); or (iii) Lender reasonably believes that Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and/or rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions may include, but are not limited to: (i) paying any sums secured by a lien that has priority or may attain priority over this Security Instrument; (ii) appearing in court; and (iii) paying: (A) reasonable attorneys' fees and costs; (B) property inspection and valuation fees; and (C) other fees incurred for the purpose of protecting Lender's interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, exterior and interior inspections of the Property, entering the Property to make repairs, changing locks, replacing or boarding up doors and windows, draining water from pipes, eliminating building or other code violations or dangerous conditions, and having utilities turned on or off. Although Lender may take action under this Section 9, Lender is not required to do so and is not under any duty or obligation to do so. Lender will not be liable for not taking any or all actions authorized under this Section 9.

(b) Avoiding Foreclosure; Mitigating Losses. If Borrower is in Default, Lender may work with Borrower to avoid foreclosure and/or mitigate Lender's potential losses, but is not obligated to do so unless required by Applicable Law. Lender may take reasonable actions to evaluate Borrower for available alternatives to foreclosure, including, but not limited to, obtaining credit reports, title reports, title insurance, property valuations, subordination agreements, and third-party approvals. Borrower authorizes and consents to these actions. Any costs associated with such loss mitigation activities may be paid by Lender and recovered from Borrower as described below in Section 9(c), unless prohibited by Applicable Law.

(c) Additional Amounts Secured. Any amounts disbursed by Lender under this Section 9 will become additional debt of Borrower secured by this Security Instrument. These amounts may bear interest at the Note rate from the date of disbursement and will be payable, with such interest, upon notice from Lender to Borrower requesting payment.

(d) Leasehold Terms. If this Security Instrument is on a leasehold, Borrower will comply with all the provisions of the lease. Borrower will not surrender the leasehold estate and interests conveyed or terminate or cancel the ground lease. Borrower will not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title will not merge unless Lender agrees to the merger in writing.

10. Assignment of Rents.

(a) Assignment of Rents. If the Property is leased to, used by, or occupied by a third party ("Tenant"), Borrower is unconditionally assigning and transferring to Lender any Rents, regardless of to whom the Rents are payable. Borrower

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authorizes Lender to collect the Rents, and agrees that each Tenant will pay the Rents to Lender. However, Borrower will receive the Rents until (i) Lender has given Borrower notice of Default pursuant to Section 26, and (ii) Lender has given notice to the Tenant that the Rents are to be paid to Lender. This Section 10 constitutes an absolute assignment and not an assignment for additional security only.

(b) **Notice of Default.** If Lender gives notice of Default to Borrower: (i) all Rents received by Borrower must be held by Borrower as trustee for the benefit of Lender only, to be applied to the sums secured by the Security Instrument; (ii) Lender will be entitled to collect and receive all of the Rents; (iii) Borrower agrees to instruct each Tenant that Tenant is to pay all Rents due and unpaid to Lender upon Lender's written demand to the Tenant; (iv) Borrower will ensure that each Tenant pays all Rents due to Lender and will take whatever action is necessary to collect such Rents if not paid to Lender; (v) unless Applicable Law provides otherwise, all Rents collected by Lender will be applied first to the costs of taking control of and managing the Property and collecting the Rents, including, but not limited to, reasonable attorneys' fees and costs, receiver's fees, premiums on receiver's bonds, repair and maintenance costs, insurance premiums, taxes, assessments, and other charges on the Property, and then to any other sums secured by this Security Instrument; (vi) Lender, or any judicially appointed receiver, will be liable to account for only those Rents actually received; and (vii) Lender will be entitled to have a receiver appointed to take possession of and manage the Property and collect the Rents and profits derived from the Property without any showing as to the inadequacy of the Property as security.

(c) **Funds Paid by Lender.** If the Rents are not sufficient to cover the costs of taking control of and managing the Property and of collecting the Rents, any funds paid by Lender for such purposes will become indebtedness of Borrower to Lender secured by this Security Instrument pursuant to Section 9.

(d) **Limitation on Collection of Rents.** Borrower may not collect any of the Rents more than one month in advance of the time when the Rents become due, except for security or similar deposits.

(e) **No Other Assignment of Rents.** Borrower represents, warrants, covenants, and agrees that Borrower has not signed any prior assignment of the Rents, will not make any further assignment of the Rents, and has not performed, and will not perform, any act that could prevent Lender from exercising its rights under this Security Instrument.

(f) **Control and Maintenance of the Property.** Unless required by Applicable Law, Lender, or a receiver appointed under Applicable Law, is not obligated to enter upon, take control of, or maintain the Property before or after giving notice of Default to Borrower. However, Lender, or a receiver appointed under Applicable Law, may do so at any time when Borrower is in Default, subject to Applicable Law.

(g) **Additional Provisions.** Any application of the Rents will not cure or waive any Default or invalidate any other right or remedy of Lender. This Section 10 does not relieve Borrower of Borrower's obligations under Section 6. This Section 10 will terminate when all the sums secured by this Security Instrument are paid in full.

11. Assignment and Application of Miscellaneous Proceeds; Forfeiture.

(a) **Assignment of Miscellaneous Proceeds.** Borrower is unconditionally assigning the right to receive all Miscellaneous Proceeds to Lender and agrees that such amounts will be paid to Lender.

(b) **Application of Miscellaneous Proceeds upon Damage to Property.** If the Property is damaged, any Miscellaneous Proceeds will be applied to restoration or repair of the Property, if Lender deems the restoration or repair to be economically feasible and Lender's security will not be lessened by such restoration or repair. During such repair and restoration period, Lender will have the right to hold such Miscellaneous Proceeds until Lender has had an opportunity to inspect the Property to ensure the work has been completed to Lender's satisfaction (which may include satisfying Lender's minimum eligibility requirements for persons repairing the Property, including, but not limited to, licensing, bond, and insurance requirements) provided that such inspection must be undertaken promptly. Lender may pay for the repairs and restoration in a single disbursement or in a series of progress payments as the work is completed, depending on the size of the repair or restoration, the terms of the repair agreement, and whether Borrower is in Default on the Loan. Lender may make such disbursements directly to Borrower, to the person repairing or restoring the Property, or payable jointly to both. Unless Lender and Borrower agree in writing or Applicable Law requires interest to be paid on such Miscellaneous Proceeds, Lender will not be required to pay Borrower any interest or earnings on such Miscellaneous Proceeds. If Lender deems the restoration or repair not to be economically feasible or Lender's security would be lessened by such restoration or repair, the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such Miscellaneous Proceeds will be applied in the order that Partial Payments are applied in Section 2(b).

(c) **Application of Miscellaneous Proceeds upon Condemnation, Destruction, or Loss in Value of the Property.** In the event of a total taking, destruction, or loss in value of the Property, all of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property (each, a "Partial Devaluation") where the fair market value of the Property immediately before the Partial Devaluation is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the Partial Devaluation, a percentage of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument unless Borrower and Lender otherwise agree in writing. The amount of the Miscellaneous Proceeds that will be so applied is determined by multiplying the total amount of the Miscellaneous Proceeds by a percentage calculated by taking (i) the total amount of the sums secured immediately before the Partial Devaluation, and dividing it by (ii) the fair market value of the Property immediately before the Partial Devaluation. Any balance of the Miscellaneous Proceeds will be paid to Borrower.

In the event of a Partial Devaluation where the fair market value of the Property immediately before the Partial Devaluation is less than the amount of the sums secured immediately before the Partial Devaluation, all of the Miscellaneous Proceeds will be applied to the sums secured by this Security Instrument, whether or not the sums are then due, unless Borrower and Lender otherwise agree in writing.

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(d) **Settlement of Claims.** Lender is authorized to collect and apply the Miscellaneous Proceeds either to the sums secured by this Security Instrument, whether or not then due, or to restoration or repair of the Property, if Borrower (i) abandons the Property, or (ii) fails to respond to Lender within 30 days after the date Lender notifies Borrower that the Opposing Party (as defined in the next sentence) offers to settle a claim for damages. "Opposing Party" means the third party that owes Borrower the Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to the Miscellaneous Proceeds.

(e) **Proceeding Affecting Lender's Interest in the Property.** Borrower will be in Default if any action or proceeding begins, whether civil or criminal, that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a Default and, if acceleration has occurred, reinstate as provided in Section 19, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower is unconditionally assigning to Lender the proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property, which proceeds will be paid to Lender. All Miscellaneous Proceeds that are not applied to restoration or repair of the Property will be applied in the order that Partial Payments are applied in Section 2(b).

12. Borrower Not Released, Forbearance by Lender Not a Waiver. Borrower or any Successor in Interest of Borrower will not be released from liability under this Security Instrument if Lender extends the time for payment or modifies the amortization of the sums secured by this Security Instrument. Lender will not be required to commence proceedings against any Successor in Interest of Borrower, or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument, by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities, or Successors in Interest of Borrower or in amounts less than the amount then due, will not be a waiver of, or preclude the exercise of, any right or remedy by Lender.

13. Joint and Several Liability; Signatories; Successors and Assigns Bound. Borrower's obligations and liability under this Security Instrument will be joint and several. However, any Borrower who signs this Security Instrument but does not sign the Note (a) signs this Security Instrument to mortgage, grant, and convey such Borrower's interest in the Property under the terms of this Security Instrument; (b) signs this Security Instrument to waive any applicable inchoate rights such as dower and curtesy and any available homestead exemptions; (c) signs this Security Instrument to assign any Miscellaneous Proceeds, Rents, or other earnings from the Property to Lender; (d) is not personally obligated to pay the sums due under the Note or this Security Instrument; and (e) agrees that Lender and any other Borrower can agree to extend, modify, forbear, or make any accommodations with regard to the terms of the Note or this Security Instrument without such Borrower's consent and without affecting such Borrower's obligations under this Security Instrument.

Subject to the provisions of Section 19, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, will obtain all of Borrower's rights, obligations, and benefits under this Security Instrument. Borrower will not be released from Borrower's obligations and liability under this Security Instrument unless Lender agrees to such release in writing.

14. Loan Charges.

(a) **Tax and Flood Determination Fees.** Lender may require Borrower to pay either (A) a one-time charge for flood zone determination, certification, and tracking services, or (B) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur that reasonably might affect such determination or certification. Borrower will also be responsible for the payment of any fees imposed by the Federal Emergency Management Agency, or any successor agency, at any time during the Loan term, in connection with any flood zone determinations.

(b) **Default Charges.** If permitted under Applicable Law, Lender may charge Borrower fees for services performed in connection with Borrower's Default to protect Lender's interest in the Property and rights under this Security Instrument, including: (i) reasonable attorneys' fees and costs; (ii) property inspection, valuation, mediation, and loss mitigation fees; and (iii) other related fees.

(c) **Permissibility of Fees.** Lender may collect fees and charges authorized by the Secretary. Lender may not charge fees that are expressly prohibited by this Security Instrument or by Applicable Law.

(d) **Savings Clause.** If Applicable Law sets maximum loan charges, and that law is finally interpreted so that the interest or other loan charges collected or to be collected in connection with the loan exceed the permitted limits, then (i) any such loan charge will be reduced by the amount necessary to reduce the charge to the permitted limit, and (ii) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment. To the extent permitted by Applicable Law, Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

15. Notices; Borrower's Physical Address. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing.

(a) **Notices to Borrower.** Unless Applicable Law requires a different method, any written notice to Borrower in connection with this Security Instrument will be deemed to have been given to Borrower when (i) mailed by first class mail, or (ii) actually delivered to Borrower's Notice Address (as defined in Section 15(c) below) if sent by means other than first class mail or Electronic Communication (as defined in Section 15(b) below). Notice to any one Borrower will constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. If any notice to Borrower required by this

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Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

(b) **Electronic Notice to Borrower.** Unless another delivery method is required by Applicable Law, Lender may provide notice to Borrower by e-mail or other electronic communication ("Electronic Communication") if: (i) agreed to by Lender and Borrower in writing; (ii) Borrower has provided Lender with Borrower's e-mail or other electronic address ("Electronic Address"); (iii) Lender provides Borrower with the option to receive notices by first class mail or by other non-Electronic Communication instead of by Electronic Communication; and (iv) Lender otherwise complies with Applicable Law. Any notice to Borrower sent by Electronic Communication in connection with this Security Instrument will be deemed to have been given to Borrower when sent unless Lender becomes aware that such notice is not delivered. If Lender becomes aware that any notice sent by Electronic Communication is not delivered, Lender will resend such communication to Borrower by first class mail or by other non-Electronic Communication. Borrower may withdraw the agreement to receive Electronic Communications from Lender at any time by providing written notice to Lender of Borrower's withdrawal of such agreement.

(c) **Borrower's Notice Address.** The address to which Lender will send Borrower notice ("Notice Address") will be the Property Address unless Borrower has designated a different address by written notice to Lender. If Lender and Borrower have agreed that notice may be given by Electronic Communication, then Borrower may designate an Electronic Address as Notice Address. Borrower will promptly notify Lender of Borrower's change of Notice Address, including any changes to Borrower's Electronic Address if designated as Notice Address. If Lender specifies a procedure for reporting Borrower's change of Notice Address, then Borrower will report a change of Notice Address only through that specified procedure.

(d) **Notices to Lender.** Any notice to Lender will be given by delivering it or by mailing it by first class mail to Lender's address stated in this Security Instrument unless Lender has designated another address (including an Electronic Address) by notice to Borrower. Any notice in connection with this Security Instrument will be deemed to have been given to Lender only when actually received by Lender at Lender's designated address (which may include an Electronic Address). If any notice to Lender required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

(e) **Borrower's Physical Address.** In addition to the designated Notice Address, Borrower will provide Lender with the address where Borrower physically resides, if different from the Property Address, and notify Lender whenever this address changes.

16. Governing Law; Severability; Rules of Construction. This Security Instrument is governed by federal law and the law of the State of Florida. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. If any provision of this Security Instrument or the Note conflicts with Applicable Law (i) such conflict will not affect other provisions of this Security Instrument or the Note that can be given effect without the conflicting provision, and (ii) such conflicting provision, to the extent possible, will be considered modified to comply with Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence should not be construed as a prohibition against agreement by contract. Any action required under this Security Instrument to be made in accordance with Applicable Law is to be made in accordance with the Applicable Law in effect at the time the action is undertaken.

As used in this Security Instrument: (a) words in the singular will mean and include the plural and vice versa; (b) the word "may" gives sole discretion without any obligation to take any action; (c) any reference to "Section" in this document refers to Sections contained in this Security Instrument unless otherwise noted; and (d) the headings and captions are inserted for convenience of reference and do not define, limit, or describe the scope or intent of this Security Instrument or any particular Section, paragraph, or provision.

17. Borrower's Copy. One Borrower will be given one copy of the Note and of this Security Instrument.

18. Transfer of the Property or a Beneficial Interest in Borrower. For purposes of this Section 18 only, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract, or escrow agreement, the intent of which is the transfer of title by Borrower to a purchaser at a future date.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, Lender will not exercise this option if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender will give Borrower notice of acceleration. The notice will provide a period of not less than 30 days from the date the notice is given in accordance with Section 15 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to, or upon, the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower and will be entitled to collect all expenses incurred in pursuing such remedies, including, but not limited to: (a) reasonable attorneys' fees and costs; (b) property inspection and valuation fees; and (c) other fees incurred to protect Lender's Interest in the Property and/or rights under this Security Instrument.

19. Borrower's Right to Reinstate the Loan after Acceleration. If Borrower meets certain conditions, Borrower shall have the right to reinstatement of a mortgage. However, Lender is not required to reinstate if: (i) Lender has accepted reinstatement after the commencement of foreclosure proceedings within two years immediately preceding the commencement of a current foreclosure proceedings; (ii) reinstatement will preclude foreclosure on different grounds in the future; or (iii) reinstatement will adversely affect the priority of the lien created by this Security Instrument. This right to reinstate will not apply in the case of acceleration under Section 18.

To reinstate the Loan, Borrower must satisfy all of the following conditions: (aa) pay Lender all sums that then would be due under this Security Instrument and the Note as if no acceleration had occurred; (bb) cure any Default of any

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LOAN #: 2534803

other covenants or agreements under this Security Instrument or the Note; (cc) pay all expenses incurred in enforcing this Security Instrument or the Note, including, but not limited to: (i) reasonable attorneys' fees and costs, (ii) property inspection and valuation fees, and (iii) other fees incurred to protect Lender's interest in the Property and/or rights under this Security Instrument or the Note; and (dd) take such action as Lender may reasonably require to assure that Lender's interest in the Property and/or rights under this Security Instrument or the Note, and Borrower's obligation to pay the sums secured by this Security Instrument or the Note, will continue unchanged.

Lender may require that Borrower pay such reinstatement sums and expenses in one or more of the following forms, as selected by Lender: (aaa) cash; (bbb) money order; (ccc) certified check, bank check, treasurer's check, or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a U.S. federal agency, national bank, or entity; or (ddd) Electronic Fund Transfer. Upon Borrower's reinstatement of the Loan, this Security Instrument and obligations secured by this Security Instrument will remain fully effective as if no acceleration had occurred.

20. Sale of Note. The Note or a partial interest in the Note, together with this Security Instrument, may be sold or otherwise transferred one or more times. Upon such a sale or other transfer, all of Lender's rights and obligations under this Security Instrument will convey to Lender's successors and assigns.

21. Loan Servicer. Lender may take any action permitted under this Security Instrument through the Loan Servicer or another authorized representative, such as a sub-servicer. Borrower understands that the Loan Servicer or other authorized representative of Lender has the right and authority to take any such action.

The Loan Servicer may change one or more times during the term of the Note. The Loan Servicer may or may not be the holder of the Note. The Loan Servicer has the right and authority to: (a) collect Periodic Payments and any other amounts due under the Note and this Security Instrument; (b) perform any other mortgage loan servicing obligations; and (c) exercise any rights under the Note, this Security Instrument, and Applicable Law on behalf of Lender. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made, and any other information RESPA requires in connection with a notice of transfer of servicing.

22. Notice of Grievance. Until Borrower or Lender has notified the other party (in accordance with Section 15) of an alleged breach and afforded the other party a reasonable period after the giving of such notice to take corrective action, neither Borrower nor Lender may commence, join, or be joined to any judicial action (either as an individual litigant or a member of a class) that (a) arises from the other party's actions pursuant to this Security Instrument or the Note, or (b) alleges that the other party has breached any provision of this Security Instrument or the Note. If Applicable Law provides a time period that must elapse before certain action can be taken, that time period will be deemed to be reasonable for purposes of this Section 22. The notice of Default given to Borrower pursuant to Section 26(a) and the notice of acceleration given to Borrower pursuant to Section 18 will be deemed to satisfy the notice and opportunity to take corrective action provisions of this Section 22.

23. Hazardous Substances.

(a) **Definitions.** As used in this Section 23, (i) "Environmental Law" means any Applicable Laws where the Property is located that relate to health, safety, or environmental protection; (ii) "Hazardous Substances" includes (A) those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law, and (B) the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, corrosive materials or agents, and radioactive materials; (iii) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law; and (iv) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

(b) **Restrictions on Use of Hazardous Substances.** Borrower will not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower will not do, nor allow anyone else to do, anything affecting the Property that: (i) violates Environmental Law, (ii) creates an Environmental Condition or (iii) due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects or could adversely affect the value of the Property. The preceding two sentences will not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

(c) **Notices; Remedial Actions.** Borrower will promptly give Lender written notice of: (i) any investigation, claim, demand, lawsuit, or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge; (ii) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release, or threat of release of any Hazardous Substance; and (iii) any condition caused by the presence, use, or release of a Hazardous Substance that adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower will promptly take all necessary remedial actions in accordance with Environmental Law. Nothing in this Security Instrument will create any obligation on Lender for an Environmental Cleanup.

24. Electronic Note Signed with Borrower's Electronic Signature. If the Note evidencing the debt for this Loan is electronic, Borrower acknowledges and represents to Lender that Borrower: (a) expressly consented and intended to sign the electronic Note using an Electronic Signature adopted by Borrower ("Borrower's Electronic Signature") instead of signing a paper Note with Borrower's written pen and ink signature; (b) did not withdraw Borrower's express consent to sign the electronic Note using Borrower's Electronic Signature; (c) understood that by signing the electronic Note using Borrower's Electronic Signature, Borrower promised to pay the debt evidenced by the electronic Note in accordance with

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LOAN #: 2534903

its terms; and (d) signed the electronic Note with Borrower's Electronic Signature with the intent and understanding that by doing so, Borrower promised to pay the debt evidenced by the electronic Note in accordance with its terms.

25. Borrower Not Third-Party Beneficiary to Contract of Insurance. Mortgage Insurance reimburses Lender (or any entity that purchases the Note) for certain losses it may incur if Borrower does not repay the Loan as agreed. Borrower acknowledges and agrees that the Borrower is not a third party beneficiary to the contract of insurance between the Secretary and Lender, nor is Borrower entitled to enforce any agreement between Lender and the Secretary, unless explicitly authorized to do so by Applicable Law.

NON-UNIFORM COVENANTS, Borrower and Lender further covenant and agree as follows:

26. Acceleration; Remedies.

(a) **Notice of Default.** Lender will give a notice of Default to Borrower prior to acceleration following Borrower's Default, except that such notice of Default will not be sent when Lender exercises its right under Section 18 unless Applicable Law provides otherwise. The notice will specify, in addition to any other information required by Applicable Law: (i) the Default; (ii) the action required to cure the Default; (iii) a date, not less than 30 days (or as otherwise specified by Applicable Law) from the date the notice is given to Borrower, by which the Default must be cured; (iv) that failure to cure the Default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument, foreclosure by judicial proceeding and sale of the Property; (v) Borrower's right to reinstate after acceleration; and (vi) Borrower's right to deny in the foreclosure proceeding the existence of a Default or to assert any other defense of Borrower to acceleration and foreclosure.

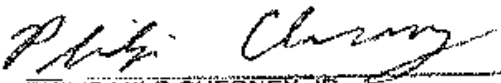
(b) **Acceleration; Foreclosure; Expenses.** If the Default is not cured on or before the date specified in the notice, Lender may require immediate payment in full of all sums secured by this Security Instrument without further demand and may foreclose this Security Instrument by judicial proceeding. Lender will be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 26, including, but not limited to: (i) reasonable attorneys' fees and costs; (ii) property inspection and valuation fees; and (iii) other fees incurred to protect Lender's interest in the Property and/or rights under this Security Instrument.

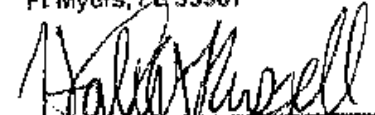
27. Release. Upon payment of all sums secured by this Security Instrument, Lender will release this Security Instrument. Borrower will pay any recordation costs associated with such release. Lender may charge Borrower a fee for releasing this Security Instrument, but only if the fee is paid to a third party for services rendered and the charging of the fee is permitted under Applicable Law.

28. Attorneys' Fees. As used in this Security Instrument and the Note, attorneys' fees will include those awarded by an appellate court and any attorneys' fees incurred in a bankruptcy proceeding.

29. Jury Trial Waiver. The Borrower waives any right to a trial by jury in any action, proceeding, claim, or counterclaim, whether in contract or tort, at law or in equity, arising out of or in any way related to this Security Instrument or the Note.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider signed by Borrower and recorded with it.

 11-21-25 (Seal)
DATE
PHILIP LYLE CHERNEY JR.
1735 Brantley Rd Apartment 1115
Ft Myers, FL 33907

 11-21-25 (Seal)
DATE
HALEY ARRIANNA RUSSELL
1735 Brantley Rd Apartment 1115
Ft Myers, FL 33907

Initials: PLC JR HAR



LOAN #: 2534903

Signed, sealed and delivered in the presence of:

Printed Name

Witness Post Office (Mailing) Address 1

Witness Post Office (Mailing) Address 2

Printed Name

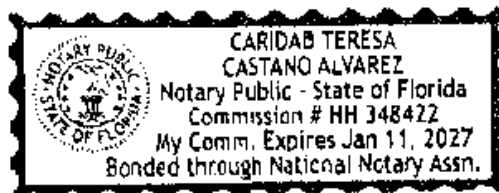
Witness Post Office (Mailing) Address 1

Witness Post Office (Mailing) Address 2

State of
County of

Florida
Hendry

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 21ST day of NOVEMBER, 2025 by PHILIP LYLE CHERNEY JR. and HALEY ARRIANNA RUSSELL, ☐ who is/are personally known to me or ☒ who has/have produced DL as identification.



Signature

Printed Name

Title or Rank

Serial Number, if any

Caridad Teresa Castano Alvarez
Notary Public
HH348422

Initials: PLC JR



LOAN #: 2534903

Lender: Inspire Home Loans Inc.
NMLS ID: 1564276
Loan Originator: Miranda Fromme
NMLS ID: 2083193

Initials:

PLC JR HAK



LOAN #: 2534903
MIN: 1013880-0000130373-2

FHA Case No.
095-7500067-703

PLANNED UNIT DEVELOPMENT RIDER

THIS PLANNED UNIT DEVELOPMENT RIDER is made this **21st** day of **November, 2025**, and is incorporated into and shall be deemed to amend and supplement the Mortgage, Deed of Trust or Security Deed ("Security Instrument") of the same date given by the undersigned ("Borrower") to secure Borrower's Note ("Note") to **Inspire Home Loans Inc., a Delaware Corporation**

("Lender") of the same date and covering the Property described in the Security Instrument and located at:
**870 Friendship Circle
Labelle, FL 33935.**

The Property Address is a part of a planned unit development ("PUD") known as **BELLE ARBOR WEST RE-PLAT**

PUD COVENANTS. In addition to the covenants and agreements made in the Security Instrument, Borrower and Lender further covenant and agree as follows:

- A. So long as the Owners Association (or equivalent entity holding title to common areas and facilities), acting as trustee for the homeowners, maintains, with a generally accepted insurance carrier, a "master" or "blanket" policy insuring the property located in the PUD, including all improvements now existing or hereafter erected on the mortgaged premises, and such policy is satisfactory to Lender and provides insurance coverage in the amounts, for the periods, and against the hazards Lender requires, including fire and other hazards included within the term "extended coverage," and loss by flood, to the extent required by the Secretary, then:
- (i) Lender waives the provision in Paragraph 3 of this Security Instrument for the monthly payment to Lender of one-twelfth of the yearly premium installments for hazard insurance on the Property, and
 - (ii) Borrower's obligation under Paragraph 5 of this Security Instrument to maintain hazard insurance coverage on the Property is deemed satisfied to the extent that the required coverage is provided by the Owners Association policy.

Borrower shall give Lender prompt notice of any lapse in required hazard insurance coverage and of any loss occurring from a hazard. In the event of a distribution of hazard insurance proceeds in lieu of restoration or repair following a loss to the Property or to common areas and facilities of the PUD, any proceeds payable to Borrower are hereby assigned and shall be paid to Lender for application to the sums secured by this Security Instrument, with any excess paid to the entity legally entitled thereto.

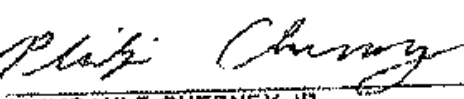
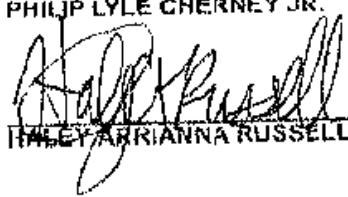
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LOAN #: 2534903

- B. Borrower promises to pay all dues and assessments imposed pursuant to the legal instruments creating and governing the PUD.
- C. If Borrower does not pay PUD dues and assessments when due, then Lender may pay them. Any amounts disbursed by Lender under this paragraph C shall become additional debt of Borrower secured by the Security Instrument. Unless Borrower and Lender agree to other terms of payment, these amounts shall bear interest from the date of disbursement at the Note rate and shall be payable, with interest, upon notice from Lender to Borrower requesting payment.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and provisions contained in this PUD Rider.

	11-21-25 (Seal)
PHILIP LYLE CHERNEY JR.	DATE
	11-21-25 (Seal)
HALEY ARRIANNA RUSSELL	DATE

Initials: PLC JR HAR

